CITY OF LONGMONT | Purchasing & Contracts

# REQUEST FOR PROPOSALS

**FOR**

# ON-CALL SPECIALIZED ELECTRICAL CONTRACTOR SERVICES FOR TREATMENT OPERATIONS

# RFP-426089

Issued October 29, 2026

**Issued by:**
City of Longmont
Purchasing & Contracts
Procurement Specialist: Michelle Davis

**For:** City of Longmont
Water & Waste Department
Longmont, CO 80501

**REQUEST FOR PROPOSALS (RFP)**
**#RFP-426089**

Procurement Specialist: Michelle Davis
Email Address: michelle.davis@longmontcolorado.gov
Telephone Number: 303-651-8343

**Proposals must be received electronically in the Rocky Mountain E-Purchasing System no later than November 18, 2026 prior to 2:00 p.m. MT.** Proposals will be time-stamped by the Rocky Mountain E-Purchasing System upon receipt.

**The City will only accept proposals submitted in the Rocky Mountain E-Purchasing System and will not accept hardcopy proposals, or proposals submitted by any other means.** If you have questions or need assistance, contact BidNet support at 800-835-4603. After uploading proposal documents, **you must click the SUBMIT button**. The City will not accept uploads that are "saved" but not "submitted". To verify that your proposal was submitted successfully, you may contact BidNet Support or verify via the Bid Management tab in your account that the documents are not in "Draft" status.

**LIVABLE WAGE REQUIRED**: For new contracts for provision of services issued after January 1, 2026, contractors must pay at least a minimum livable wage $26.18 per hour or $54,454.40 annually, not including fringe benefits, to full time employees of the contractor for work performed and billed under this Contract. The City may annually adjust the required livable wage to account for inflation.

**Schedule of Events (subject to change)**

All times are given in local Colorado time

| | |
|---|---|
| RFP Issued: | October 29, 2026 |
| Inquiry Deadline: | November 5, 2026 prior to 4:00 p.m. |
| Final Addendum Issued: | November 10, 2026 |
| Proposal Due Date and Time: | November 18, 2026 prior to 2:00 p.m. |

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## SECTION I. BACKGROUND, OVERVIEW, AND GOALS

### A. Overview

The City of Longmont (City) is seeking electrical Contractor(s) to handle a range of electrical services on an on-call, as needed basis for the Operations Division. The City may award to multiple electrical contractors.

## SECTION II. SCOPE AND REQUIREMENTS

### A. Scope of Services

Work includes general and specialty electrical work for the Treatment Operations Group in the City's Water and Waste Department. Items that may be included in this work are:

1. Create dedicated circuits
2. UPS supply power installations
3. Replace building supply transformers
4. Electrical panel upgrades
5. Re-routing of conduit and switches
6. Disconnect and re-connect RTU feeds and update circuits when replaced with new
7. Replacing distribution panel circuit breakers
8. Provide emergency power during planned and unplanned outages
9. Replacing conduit and conductors
10. Excavation to install or intercept conduits and feeders
11. Assistance for troubleshooting
12. Replacement and maintenance for lighting and power
13. Design and installation of generators up to 200kW in size, along with accompanying automatic transfer switches (ATS).
14. Experience with setting up motors and variable frequency drives
15. AC and DC controls
16. PLCs and RTUs
17. Process automation systems
18. Installation and calibration of flow meters, pressure, level, and temperature sensors

Services will encompass a variety of City projects in an industrial environment for the Wastewater Treatment Plant, Nelson-Flanders Drinking Water Treatment Plant, Wade-Gaddis Drinking Water Treatment Plant, Drinking Water Distribution System, Sanitary Collection System and Raw Water Supply System. Throughout this contract, the City may have projects that are scheduled and pre-arranged, but there may also be unanticipated requests needing immediate attention.

The Contractor may be required to troubleshoot emergency backup power systems. There may be times where the work requires the Contractor to perform basic level design work for the purpose of completing the work or for obtaining Building Permits when needed on projects. The Contractor may also be called upon for emergency response for natural and/or man-made disasters and in these situations the tasks could vary widely in scope.

The Contractor will supply all of the equipment and labor necessary to complete the scope. The City will not provide equipment. The Contractor must send a journeyman or master electrician to every job.

All Work shall be performed in accordance with the Construction Contract General Conditions included as Attachment E in this RFP.

The Contractor is responsible for the professional quality, technical accuracy, and the coordination of all services provided and shall comply with all the applicable provisions of the Local, State and Federal laws including required professional certifications and licenses.

Work will be requested on a task basis by a City representative to one or more of the selected electrical contractors at the time work is required. A brief explanation of the assistance needed will be provided along with the opportunity to view the work. The Contractor will then return a brief description of the approach to the task, a schedule for its completion and estimated "not to exceed" cost within 48 hours under normal circumstances and within 24 hours in emergency situations. The not to exceed estimated cost is to be based on the pricing submitted in the Contractor's proposal submitted in response to this RFP. When the City's representative has agreed to the approach, schedule and cost, the electrical Contractor will commence the work within five business days. Occasionally, emergency work will need to commence sooner and will be requested by the City representative.

As an on-call contract, the City will develop individual scopes of work on a project-by-project basis, which may include one or more of the tasks outlined above. Individual projects performed under this agreement must not exceed $500,000.00 and will be in accordance with the contracting matrix below. All awards under this Contract will require the issuance of a purchase order, contract, or be paid by a City credit card (VISA).

On-Call Contracting Matrix

| Project Value | Process |
|---|---|
| < $50,000 | • Work order issued through a Purchase Order or Notice to Proceed from City's Project Manager if paid by p-card.<br>• Quotes may be requested from one or more on-call consultants.<br>• Scope of Work may be Lump Sum or by task using hourly rates. Back-up documentation evidencing contracted unit rates are utilized in calculating the total project amount may be required. |
| $50,000 to $500,000 | • Will require a separate construction contract<br>• Performance and payment bonds will be required from the Contractor and must be submitted on the City's forms.<br>• Quotes will be solicited from all on-call contractors for projects valued at over $100,000 unless otherwise approved by the City's Purchasing Division.<br>  ○ Evaluation based on total cost, proposed schedule, and experience of Consultant in the area of the requested work.<br>  ○ Back-up documentation evidencing contracted unit rates utilized to reach the total amount will be required. |

Work will be requested by the City on an as-needed basis. The City does not guarantee any quantities of work resulting from this contract.

The City's intent is to streamline the award of individual projects by utilizing this on-call contract; however, this does not eliminate the right for City to use an informal or formal bid process on specific projects when the City deems it is in its best interest to do so.

### B. Period of Award

The effective date of providing the required product and services shall be from the date of award for a period of one (1) year, and may be renewable for four (4) additional one-year periods.

If the City desires to extend the contract, not later than thirty (30) days prior to expiration, the City shall send a notice in writing to the awarded proposer requesting firm pricing for the next 12-month period. After the City evaluates the firm pricing proposal, it will determine whether to extend the contract. All awards and extensions are subject to annual appropriation of funds. The provisions of the foregoing paragraphs with respect to extensions of the terms of the contract shall be null and void if the contract has been terminated or revoked during the initial term or any extension thereof. All decisions to extend the contract are at the option of the City.

## SECTION III. PROPOSAL SUBMISSION AND RESPONSE FORMAT

Following are the response requirements for this RFP. To facilitate the evaluation, proposers shall submit and organize the proposal in accordance with this section. All specific response format items represent the minimum information proposers must submit. At the City's discretion, deletions or incomplete responses in terms of content or aberrations in form may render a proposal non-responsive.

### A. Proposal Submission

The City will only accept proposals submitted in the Rocky Mountain E-Purchasing System (RMEPS). The City will not accept late proposals for any reason, including force majeure events and technical difficulties. It is the proposer's responsibility to submit the proposal in RMEPS prior to the Proposal Due Date and Time. Proposers who do not successfully submit a proposal by the Proposal Due Date and Time will not be eligible for evaluation.

**Proposals must be submitted online through RMEPS. The City will not accept hardcopy proposals, or proposals submitted by any other means. If you have questions or need assistance with RMEPS, contact BidNet support at 800-835-4603.**

Proposal file sizes cannot exceed 2 GB. Proposals should be clear, concise, and specific to the needs and conditions of this RFP. Proposers should direct questions regarding appropriate submittal material to the Procurement Specialist.

Proposal submission will include:

- One Original version of proposal, saved as a single .pdf file.
- **If desired**: One Public Viewing version of the proposal identified "FOR PUBLIC VIEWING", in accordance with the procedure in Section IV, M of this RFP, saved as a single .pdf file.

Proposals that are at a variance with these submission requirements may not be accepted.

### B. Response Format

The following items must be included in your proposal in the order listed. Deviation may render your proposal non-responsive.

1. **Cover Letter**
Include a cover letter introducing your company, summarizing your qualifications, and detailing:

   a. Principal contact person for this RFP, including address, telephone number, email, and website address.

2. **Company Information**

   a. Provide the following information: Company Name, Address, Phone Number, and Names of Principals.

   b. Identify the year in which your company was established and began providing the services specified in this RFP.

   c. Provide a comprehensive listing of all the services you provide.

   d. List your company's Standard & Poor's or AM Best (or comparable) rating, if applicable.

   e. Describe any pending plans to sell or merge your company.

   f. Identify any lawsuits or litigation, past or present, that your firm has been a party to.

3. **Use of Subcontractors/Partners**
There may be areas for use of subcontractors or partners in this project. If you are using this approach, your proposal must list:

   a. The subcontractors/partners.

   b. Their area(s) of expertise.

   c. All other applicable information herein requested for each subcontractor/partner.

   The City will contract solely with your company; therefore, subcontractors/partners remain your sole responsibility.

4. **Evaluation Criterion #1 – Company and Personnel Qualifications (Weight: 40%)**

   a. Provide information from at least three projects/contracts of similar scope including wastewater treatment plants, drinking water treatment plants, water distribution system pump stations, and/or other industrial process or manufacturing environments within the last 5 years. Include, at a minimum, the following information: 1) company name, 2) contact name, 3) phone number, 4) email address, 5) brief description of project scope and value, and 6) status of project. The City reserves the right to contact the references provided in your proposal as well as other references without prior notification to you.

b. Describe the safety program for your firm, and attach a copy of your Experience Modification Rate (EMR) as well as the last three years of your OSHA 300 form.

c. Has your company worked for the City previously? If so, list the year, the City's project manager, your project manager, and type of work completed.

d. Describe your philosophy on ratio of apprentice, journeyman and master electricians in your workforce. Give examples of ratios for projects up to $10,000, projects up to $25,000, and projects up to $500,000.

e. Is your company listed and in good standing with the State's electrical board? Provide a copy of the license for verification purposes.

f. Specify the professional staff that you would assign to the City of Longmont's account by name, title, and work location. Attach brief professional experience and qualifications for each including licensure (Journeyman or Master electrician). Identify each individual's roles and responsibilities.

g. Identify the person who would be the day-to-day contact for the City.

5. **Evaluation Criterion #2 – Approach to Scope of Work (Weight: 35%)**

a. Describe any project approaches or ideas that you would apply to this project and that you feel would give you an advantage over your competitor.

b. How will your company handle projects from the City with your normal workload? Address your capacity for immediate response to the City's projects as well.

c. Describe how you will handle quality assurance.

d. Describe your company's ability to provide preventive maintenance services for electrical systems as part of the contract. For example, heat signature analysis on panels, testing of variable frequency drives, automatic transfer switches, UPS systems, emergency back-up power circuits, and similar.

e. Describe your customer service philosophy.

f. Define your normal business hours, overtime hours, normal working days, and any observed holidays.

g. Provide after-hours contact information and procedures for your company's on call emergency availability.

h. Provide a list of all tools, equipment, and machinery owned by your company that will assist you in servicing the City.

i. Provide details for your company's response time for an emergency and a non-emergency service call. Is your company able to respond to an emergency 24 hours per day, 365 days per year?

j. Is your company able to provide 3-phase, 480 V, AC mobile generator(s) with a minimum of 180 kW within 2 hours of notification and 500 kW within 24 hours of notification? Please describe your response.

6. **Evaluation Criterion #3 – Value/Cost of Efforts** **(Weight: 25%)**

a. Provide a cost for the services and products per Attachment C – RFP Pricing Submittal. Show a breakdown of all reimbursable expenses required to complete the work. Also, provide hourly rates for your firm and all subcontractors. All pricing submitted will be considered valid throughout the initial term of the contract.

7. **Proposal Acknowledgement.** This required form is included as Attachment A.

8. **Contract Exceptions**
Any exceptions to this RFP or the Sample Contract (Attachment D), no matter how slight, must be detailed and provided as indicated in Attachment B. Significant exceptions may make your proposal nonresponsive. If variations are not stated in your proposal, it shall be construed that the proposal fully complies with the specifications, terms and conditions, solicitation documents, and attached Sample Contract. Notwithstanding the above, it is agreed and understood that the City reserves the right to reject these exceptions if they do not meet its requirements.

## SECTION IV. ADMINISTRATIVE INFORMATION

### A. Process Subject to Purchasing Code

The Request for Proposal process shall be conducted subject to the Purchasing Code, Chapter 4.12 of the Longmont Municipal Code, (LMC).

### B. Issuing Office

The City's Procurement Specialist listed herein is to be the sole point of contact concerning this RFP. Proposers shall not directly contact other personnel regarding matters concerning this RFP or to arrange meetings related to such.

### C. Official Means of Communication

All official communication from the City to proposers will be via postings on an electronic solicitation notification system, Rocky Mountain E-Purchasing System (RMEPS), bidnetdirect.com/city-of-longmont. The Procurement Specialist will post notices that will include, but not be limited to, any modifications to administrative or performance requirements, answers to inquiries received, clarifications to requirements, and the announcement of award. It is incumbent upon proposers to carefully and regularly monitor the RMEPS for any such postings.

The City of Longmont does not guarantee accurate information obtained from sources other than RMEPS.

**D. Inquiries**

Prospective proposers may make written inquiries by email before the written inquiry deadline concerning this RFP to obtain clarification of requirements. The City will not accept inquiries after the deadline. Send inquiries regarding this RFP (be sure to reference RFP number) to:

Email: michelle.davis@longmontcolorado.gov
Subject Line: RFP-426089

The City will publish responses to proposers' inquiries as an addendum on RMEPS in a timely manner. Proposers cannot rely on any other statements that clarify or alter any specification or other term or condition of the RFP.

**Should any interested proposer, sales representative, or manufacturer find any part of the listed specifications, terms and conditions to be discrepant, incomplete, or otherwise questionable in any respect, it shall be the responsibility of the concerned party to notify the Procurement Specialist of such matters immediately upon discovery.**

**E. Addenda**

Any explanations or corrections shall be made as Addenda to the documents and shall be published on RMEPS for all prospective proposers. Proposers shall acknowledge receipt of all Addenda in the appropriate spaces provided in the Proposal Acknowledgement. Oral explanations and interpretations made prior to the Proposal Due Date and Time will not be binding.

**F. Proposal Forms**

1. A person who submits a proposal and affixes "President," "Secretary," "Agent," or other designation to his or her signature, without disclosing the principal, may be personally held to the proposal.

2. The City will not consider more than one proposal from an individual, firm, partnership, or corporation under the same or different names. Evidence that any proposer is interested in more than one proposal for the same work will be cause for rejection of all such proposals. Collusion between the proposers will be considered sufficient cause for the rejection of all affected proposals. A party quoting prices to a proposer is not thereby disqualified from quoting prices to other proposers or from submitting a direct proposal on the proposer's own behalf.

**G. Insurance**

The awarded proposer will be required to, at its own cost, secure and continuously maintain through the term of the contract the minimum insurance coverages listed below, with forms and insurers acceptable to City. In addition, the awarded proposer will be required to maintain such coverages for the insurance listed in paragraphs 1, 3 and 4 below for two additional years. For any claims-made policy, awarded proposer shall include the necessary retroactive dates and extended reporting periods to maintain continuous coverage.

1. General liability, including contractual liability, of at least $1,000,000 per each occurrence plus an additional amount adequate to pay related attorney's fees and defense cost. Coverage shall include bodily injury, property damage, personal injury, and contractual liability.

2. Comprehensive Automobile Liability with minimum limits for bodily injury and property damage coverage of at least $1,000,000 per each occurrence plus an additional amount adequate to pay related attorneys' fees and defense costs, for each of awarded proposer's owned, hired or non-owned vehicles assigned to or used in performance of the contract.

3. Workers' Compensation according to the Workers' Compensation Act of the State of Colorado and Employer's Liability with limits of at least $500,000.

4. The required general liability and comprehensive automobile liability policies shall contain endorsements to include City and its officers and employees as additional insureds. The required professional liability and workers' compensation policies or coverages shall not contain endorsements including the City, its officers or employees as additional insureds. Every policy required above shall be primary insurance. Any insurance or self-insurance benefits carried by City, its officers, or its employees, shall be excess and not contributory to that provided by awarded proposer.

5. Awarded proposer shall, upon request, provide City a certified copy of each required policy.

6. As evidence of the insurance coverages required by the contract, before beginning work under the contract, the awarded proposer shall furnish certificates of insurance certifying that at least the minimum coverages required here are in effect and specifying the liability coverages (except for professional liability) are written on an occurrence form to:

   City of Longmont
   350 Kimbark Street
   Longmont, CO 80501
   Attention: Procurement Specialist

   With the exception of professional liability and workers' compensation, policy or policies providing insurance as required will defend and include the City, its council, officers, agents and employees as additional insureds on a primary basis for work performed under or incidental to the contract.

7. Only insurance written by insurance companies authorized to do business in Colorado complies. If awarded proposer is self-insured under the laws of the State of Colorado, awarded proposer shall provide appropriate declarations and evidence of coverage.

8. Awarded proposer shall not cancel, change, or fail to renew required insurance coverages. Awarded proposer shall notify City's Risk Manager of any reduction or exhaustion of aggregate limits, which City may deem to be a breach of the contract.

9. The City relies on, and does not waive or intend to waive, by any provision of the contract, the monetary limitations or any other rights, immunities, and protections provided by the Colorado Governmental Immunity Act, § 24-10-101 et seq., C.R.S., as from time to time amended, or otherwise available to the parties, their officers, or their employees.

10. If any insurance required here is to be issued or renewed on a claims-made form as opposed to the occurrence form, the retroactive date for coverage will be no later than the commencement date of the project and will state that in the event of cancellation or nonrenewal, the discovery period for insurance claims (tail coverage) will be at least 72 months.

11. Awarded proposer shall not cancel, non-renew or cause insurance to be materially changed or replaced by another policy without prior approval by City.

**H. Modification or Withdrawal of Proposals**

Proposals may be modified or withdrawn by the proposer prior to the established due date and time.

**I. Minor Informalities**

Minor informalities are matters of form rather than substance evident from the response or insignificant mistakes that the City can waive or correct without prejudice to other proposers. The Procurement Specialist may waive such informalities or allow the proposer to correct them depending on which is in the best interest of the City.

**J. Responsibility Determination**

The City will make awards only to responsible proposers. The City reserves the right to assess proposer responsibility at any time in this RFP process and may not make a responsibility determination for every proposer.

**K. Acceptance of RFP Terms**

A proposal submitted in response to this RFP shall constitute a binding offer. The autographic signature of a person legally authorized to execute contractual obligations on behalf of the proposer shall indicate acknowledgment of this condition. A proposal in response to this RFP acknowledges acceptance by the proposer of all terms and conditions as set forth herein. The proposer shall identify clearly and thoroughly any variations between its proposal and the RFP in the cover letter. The City will deem a failure to waive any rights to subsequently modify the terms of performance, except as outlined or specified in the RFP.

**L. Protested Solicitations and Awards**

Any actual or prospective proposer aggrieved in connection with the solicitation or award of a contract may submit a written protest to the Purchasing and Contracts Manager. Actual or prospective proposers shall submit protests within three calendar days of the date they learned of or reasonably should have learned of facts giving rise to the protest. A protest based upon restrictive specifications or alleged improprieties in the RFP must be filed no later than three calendar days prior to Due Date and Time for proposals, unless the aggrieved party did not know and should not have known of the facts giving rise to such protest prior to three days before the closing date for proposals.

## M. Confidential/Proprietary Information

The City neither requests nor encourages the submission of confidential/proprietary information in response to this RFP. All proposals will be confidential until the City awards and fully executes a contract with the successful proposer. At that time, all proposals and documents pertaining to the proposals will be open for public inspection, except for the material that is proprietary or confidential.

Proposers can make a request for confidentiality to the Procurement Specialist if the submission is in accordance with the following procedure. This is the *sole responsibility* of the proposer. The Procurement Specialist is not required to attempt to cure any information that is at a variance with this procedure, and the City may not give the proposer an opportunity to cure any variances after proposal submission. **The City will not consider a proposal in its entirety nor proposal price information to be confidential/proprietary.** Proposers with questions about the application of this procedure should direct inquiries to the Procurement Specialist listed in this RFP.

**Procedure for Submitting Proprietary or Confidential Information:**

1. The proposer will submit one additional complete proposal clearly marked "FOR PUBLIC VIEWING." In this version of the proposal, the proposer will black out all text and/or data that it wishes the City to consider confidential and denote the information as "proprietary" or "confidential".

2. A written description will accompany the "FOR PUBLIC VIEWING" copy of the proposal identifying the material that the proposer considers proprietary or confidential. Specific reasoning for why each item is to remain confidential, other than recitation of a specific state or federal statute, is required.

3. When a proposer submits a "FOR PUBLIC VIEWING" version of their proposal, that version will be open to the public while the City will maintain the original version of the proposer's proposal as confidential material.

The Procurement Specialist may declare a proposal that is at variance with this procedure non-responsive and such proposal may not be considered.

## N. Acceptance of Proposal Content

The contents of the proposal (including persons specified to implement the project) of the awarded proposer shall become contractual obligations into the contract award. Failure of the awarded proposer to perform in accordance with these obligations may result in cancellation of the award and the City may remove such proposer from future solicitations.

## O. RFP Cancellation

The City reserves the right to cancel this RFP at any time, without penalty.

## P. Negotiation of Award

In the event that the City only receives one responsive proposal, the City reserves the right to negotiate the award for the services with the proposer in lieu of accepting the proposal as is.

**Q. Contract**

A sample copy of the contract the City will use for the services specified in this RFP is included as Attachment D for your review. The contract is only a sample and proposers are not to complete it at this time. Please note in your proposal any requests for exceptions and modifications to the contract. Significant exceptions or modifications to the contract may be reason for considering a proposal nonresponsive.

**R. Proposals**

1. **Irregular Proposals:** Proposals may be rejected if they show any omission, alteration of form, additions not called for, conditional Alternates, or irregularities of any kind which, in the opinion of the City, tend to make the proposal indefinite or ambiguous. The City will reject proposals with prices which are obviously unbalanced as determined by the Purchasing and Contracts Manager. Contracts will be awarded only to responsible proposers capable of performing the class of work contemplated.

2. **Collusion:** Proposals will be rejected if there is reason for believing that collusion exists among the proposers. Participants in such collusion are subject to suspension and debarment pursuant to the Purchasing Code.

3. **Qualification of Proposers:** For certain projects, the City may require potential proposers to submit information regarding the proposer's qualifications in addition to the information provided in the Proposal Submittal documents. The requirement for such information will be identified in the Request for Proposal or elsewhere in the Proposal Documents. Any information requested by or on file with the City may be used to qualify or disqualify potential proposers.

**S. RFP Response/Material Ownership**

All material submitted regarding this RFP becomes the property of the City of Longmont, unless otherwise noted in the RFP.

**T. Incurring Costs**

The City is not liable for any cost incurred prior to issuance of a legally executed contract and/or an official City purchase order.

**U. Utilization of Award by Other Agencies**

The City reserves the right to allow other state and local governmental agencies, political subdivisions, and/or school districts to use the resulting award under all terms and conditions specified and upon agreement by all parties. Usage by any other entity shall not have a negative impact on the City in the current term or in any future terms.

## V. Non-Discrimination

The proposer shall comply with all applicable state and federal laws, rules and regulations involving non-discrimination on the basis of race, color, religion, national origin, age or sex.

## W. News Releases

Neither the City, nor the proposer, shall make news releases pertaining to this RFP prior to execution of the contract without prior written approval of the other party. The City's Public Information Office provides written consent on the City's behalf.

## X. Certification of Independent Price Determination

1. By submission of this proposal each proposer certifies, and in the case of a joint proposal, each party thereto certifies as to its own organization, that in connection with this procurement:

    a. The prices in this proposal have been arrived at independently, without consultation, communication, or agreement, for the purpose of restricting competition, as to any matter relating to such prices with any other proposer or with any competitor;

    b. Unless otherwise required by law, the prices which have been quoted in this proposal have not been knowingly disclosed by the proposer and will not knowingly be disclosed by the proposer prior to the Proposal Due Date and Time, directly or indirectly, to any other proposer or to any competitor; and

    c. No attempt has been made or will be made by the proposer to induce any other person or firm to submit or not to submit a proposal for the purpose of restricting competition.

2. Each person signing the Proposal Acknowledgement form of this proposal certifies that:

    a. He is the person in the proposer's organization responsible within that organization for the decision as to the prices being offered herein and that he has not participated, and will not participate, in any action contrary to (1)(a) through (1)(c) above; or

    b. He is not the person in the proposer's organization responsible within that organization for the decision as to the prices being offered herein but that he has been authorized in writing to act as agent for the persons responsible for such decision in certifying that such persons have not participated, and will not participate, in any action contrary to (1)(a) through (1)(c) above, and as their agent does hereby so certify; and he has not participated, and will not participate, in any action contrary to (1)(a) through (1)(c) above.

3. A proposal will not be considered for award where (1)(a), (1)(c), or (2) above has been deleted or modified. Where (1)(b) above has been deleted or modified, the proposal will not be considered for award unless the proposer furnishes with the proposal a signed statement which sets forth in detail the circumstances of the disclosure and the City's

Purchasing and Contracts Manager, or designee, determines that such disclosure was not made for the purpose of restricting competition.

**Y. Taxes**

Pursuant to § 39-26-114, C.R.S. and §§ 4.04.090 and 4.04.290, Longmont Municipal Code as amended, the City of Longmont is exempt from paying sales or use taxes. Materials and equipment purchased solely for City projects, that will become a permanent part of the final project, are tax exempt. Contractors and all subcontractors must obtain their own tax exempt number and certificate of exemption from the Colorado State Department of Revenue for each project. The Contractor must furnish a copy of such certificate to the City before purchasing any materials or beginning any Work. The City will furnish its tax exempt numbers for the Contractor to reference when applying for its own tax exempt number.

**Z. Assignment and Delegation**

Neither party to any resulting contract may assign or delegate any portion of the contract without the prior written consent of the other party.

**AA. Availability of Funds**

Financial obligations of the City payable after the current fiscal year are contingent upon funds for that purpose being appropriated, budgeted and otherwise made available. In the event funds are not appropriated, any resulting contract will become null and void, without penalty to the City.

**BB. Standard of Conduct**

The awarded proposer shall be responsible for maintaining satisfactory standards of employees' competency, conduct, courtesy, appearance, honesty, and integrity, and shall be responsible for taking such disciplinary action with respect to any employee, as may be necessary.

The City may request that the awarded proposer immediately remove from this assignment any employee found unfit to perform duties due to one or more of the following reasons:

1. Neglect of duty.

2. Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words or actions or fighting.

3. Theft, vandalism, immoral conduct or any other criminal action.

4. Selling, consuming, possessing, or being under the influence of intoxicants, including alcohol, or illegal substances while on assignment for the City.

Agents and employees of the awarded proposer working in City facilities shall present a clean and neat appearance. The City reserves the right to require each employee of the awarded proposer working in a City facility to wear an ID badge or uniform identifying: the company by name, the first name of the employee, and a photograph of the employee if using an ID badge. In these instances, each employee shall wear or attach the ID badge to the outer garments at all times.

**CC. Damages for Breach of Contract**

In addition to any other legal or equitable remedy the City may be entitled to for a breach of the resulting contract, if the City terminates the contract, in whole or in part, due to the awarded proposer's breach of any provision of the contract, the awarded proposer shall be liable for actual and consequential damages to the City.

**DD. Right to Inspect**

The City may, at reasonable times, inspect the part of the plant, place of business or worksite of the proposer or the proposer's subcontractors at any tier which is pertinent to the performance of the award of the Contract.

**EE. Laws to be Obeyed**

Proposer shall familiarize themselves with the provisions of the laws of the State of Colorado and the Federal Government, and with all local laws and all regulations made which are pertinent to the proposed work and shall comply with the same.

**FF. Equal Opportunity**

Proposer will not discriminate against any employee or applicant for employment because of race, color, religion, age, sex, or national origin, or other reason prohibited by applicable federal, state or local law, ordinance or regulation. Proposer shall abide by all federal laws in effect during the Contract period which govern Equal Opportunity Employment.

**GG. Other Statutes**

1. The signatory hereto avers that he is familiar with Colorado Revised Statutes, 18-8-301, et seq. (Bribery and Corrupt Influence) and 18-8-401, et seq. (Abuse of Public Office) as amended, and that no violation of such provisions is present.

2. The signatory hereto avers that to his knowledge, no City of Longmont employee has any personal or beneficial interest whatsoever in the service or property described herein. See C.R.S. 24-18-201 and C.R.S. 24-50-507.

**HH. Local and Small Business Preference**

Effective for solicitations issued on or after October 6, 2009, the City of Longmont purchasing code (L.M.C. 4.12.190) establishes a preference for doing business with local and small, local companies. The following applies to this RFP process:

1. Local businesses will receive a 5% preference in the scoring of proposals.

2. Small Local businesses will receive a 2.5% preference in addition to the local business preference.

Applicable definitions are as follows:

"Local" means an active business that: (1) has an unrevoked Longmont sales and use tax license, (2) has a physical location with at least one employee operating legally within the Longmont city limits, and (3) is not delinquent in any payment or filing obligation related to City taxes.

"Small Local" means that proposer is a "Local" business with 35 or fewer employees. *In order to qualify as small, you must first qualify as local.*

Proposers who meet these criteria must certify themselves as such on the Proposal Acknowledgement form. Where applicable, the percentage increase will be an adjustment the total score for the proposal.

**II. Livable Wage Required**

For new contracts for the provision of services issued after January 1, 2026, the awarded proposer must pay at least a minimum livable wage of $26.18 per hour or $54,454.40 annually, not including fringe benefits, to full-time employees of the awarded proposer for work performed and billed under the resulting contract. The City may annually adjust the required livable wage to account for inflation. This requirement will not apply to contracts exempt from the Purchasing Code (L.M.C. §4.12) or when using non-City funds.

Proposer certifies that it will comply with this wage requirement. The minimum livable wage requirement shall be binding upon the assignees and successors in interest of the resulting contract.

**JJ. Accessibility**

Awarded proposer shall comply with all applicable provisions of §§24-85-101, et seq., C.R.S., and the Accessibility Standards for Individuals with a Disability, as established by the Colorado Governor's Office of Information Technology pursuant to Section §24-85-103 (2.5), C.R.S. Awarded proposer shall also comply with all State of Colorado technology standards related to technology accessibility and with Level AA of the most current version of the Web Content Accessibility Guidelines (WCAG), incorporated in the State of Colorado technology standards.

## SECTION V. EVALUATION AND AWARD

**A. Proposal Evaluation**

A committee will evaluate proposals submitted in response to this RFP in accordance with the criteria described in section III, B and as listed below. The City will tabulate total scores and will award the contract to the proposer whose proposal is most advantageous to the City.

The City may request an interview, presentation and/or demonstration by short-listed proposers prior to award. However, an interview, presentation and/or demonstration may not be requested, and therefore, complete information should be included with your proposal. If the City requests presentations by short-listed proposers, committee members may update individual scores for the interviewed firms based on clarifications received, in the context of the identified evaluation criteria. Please note that if the City invites your company to give a presentation to the committee, the dates may not be flexible.

In preparing responses, proposers should describe in detail how they propose to meet the specifications as detailed in the previous sections. The evaluation committee will apply specific factors to proposal information

to assist the City in selecting the most qualified proposer for this contract. Evaluation criteria, in order of relative importance, are as follows:

1. Company and Personnel Qualifications

2. Approach to Scope of Work

3. Value/Cost of Efforts

**B. Determination of Responsibility of the Proposer**

The City of Longmont awards contracts to responsible proposers. The City reserves the right to make its proposer responsibility determination at any time in this RFP process and may not make a responsibility determination for every proposer.

The City of Longmont's Municipal Code defines a "responsible proposer" as one who is "capable in all respects of fully performing the contract requirements and possessing the integrity and reliability to assure good faith performance." The City reserves the right to request information it deems necessary to determine a proposer's responsibility. If the proposer fails to supply the requested information, the City shall base the determination of responsibility upon any available information or may find the proposer non-responsible if such failure is unreasonable.

**C. Acceptancy of Proposal and Its Effects**

The City will act upon the proposals with reasonable promptness after they are due. The acceptance of a proposal will be a written Notice of Award signed by the duly authorized representative of the City. No other act of the City shall be necessary to constitute acceptance of a proposal. The acceptance of a proposal binds the successful proposer to execute the required Contract and take all action necessary to fulfill the Contract.

**ATTACHMENT A: PROPOSAL ACKNOWLEDGEMENT**
**RFP-426089**

1. Proposer hereby acknowledges receipt of addenda numbers ___ through ___. ☐ N/A

2. Proposer hereby certifies that the following purchasing preferences apply:

   ☐ Proposer is a "Local Business" where "Local" means an active business that: (1) has an unrevoked Longmont Sales and Use Tax License, (2) has a physical location with at least one employee operating legally within the Longmont city limits, and (3) is not delinquent in any payment or filing obligation related to City taxes. *Proposer status will be verified by City staff.*

   ☐ Proposer is a "Small Local Business" which means a Local Business, as defined above, **and** has 35 or fewer employees.

   ☐ Neither Local nor Small Local Business as defined above.

Falsifying this information is cause to deem your proposal nonresponsive and therefore ineligible for consideration. In addition, falsification of this information is cause to cancel a contract awarded based on one or both of the above preferences. City staff will verify proposer status.

---

As a proposer for the above-identified project, by signing below, you agree to all terms & conditions in this RFP, except where expressly described in your cover letter.

| | |
|---|---|
| Signature by Authorized Officer/Agent | Company Tax ID Number (FEIN) |
| Type or Print Name of Person Signing | Company Name |
| Title | Phone Number |
| Mailing Address | Fax Number |
| City, State, Zip | Proposal Valid Until (at least for 90 days) |
| E-Mail Address | Date Submitted |

Proposer is organized as a: ☐Corporation ☐LLC ☐Partnership ☐Sole Proprietor ☐Other _____

If a corporation, the state where it is incorporated _____

**ATTACHMENT B: CONTRACT EXCEPTIONS**

Check One:

☐ There are no exceptions taken to any of the terms, conditions, specifications, solicitation documents, or the contract.

☐ There are exceptions taken to the terms, conditions, specifications, solicitation documents or contract which are clearly detailed and attached to this Exhibit.

NOTE: All potential proposers are advised that exceptions taken may be considered during the evaluation phase which may affect the final scoring of proposals. Proposers stipulating that the City must use their contract or agreement may be determined non-responsive and their proposal determined unacceptable.

---

The following contract terms are considered unacceptable and non-negotiable by the City:

- Limitation of Liability for death, bodily injury, or damage to tangible property (including data)
- Indemnification by the City
- Binding Arbitration
- Governing Law other than the State of Colorado

_____

Original Signature by Authorized Officer/Agent

_____

Type or Print Name of Person Signing

_____

Company Name

_____

Title

**ATTACHMENT C: RFP PRICING SUBMITTAL**

## I. PRICING

**1. Labor:** The cost per hour for electrical service work personnel including all associated costs.

| Labor/Service | Business Hours | Overtime Hours |
|---|---|---|
| Minimum Call Out Cost | $_____/Hour | $_____/Hour |
| Apprentice | $_____/Hour | $_____/Hour |
| Journeyman | $_____/Hour | $_____/Hour |
| Master Electrician | $_____/Hour | $_____/Hour |
| Project Manager | $_____/Hour | $_____/Hour |

**2. Markup on Materials:** The percent added to the actual wholesale cost (no retail pricing will be accepted) of materials or special equipment rental. Give contractor cost, percentage markup that will be charged on all work.

Markup on Materials cost _____%

**3. Supervision Ratio:** What is the time ratio of supervision to labor staff personnel needed on any given project under this contract, assume 100% of total staff time. Example: S=10% L=90%

Supervision ratio S=____% L=____%

## II. OTHER ITEMS

1. Are there additional charges for specialized equipment or services? YES NO
2. List each specialized equipment types or service and associated labor rate. (Use additional sheets if needed. Price shall include the equipment charge and the labor to operate it.)

_____

_____

_____

3. Are there any associated trip charges or minimum service call fees to the City of Longmont for this contract? If so list the rate? _____

_____

**ATTACHMENT D: SAMPLE CONTRACT**

**CITY OF LONGMONT, COLORADO SERVICES CONTRACT**

Contract # [Type proposal number, press f11 to proceed]

THIS CONTRACT, made at the City of Longmont, Colorado, by and between the City of Longmont, Colorado (City), a municipal corporation, and [Type name of contractor, press f11 to proceed] (Contractor), a [Type state of incorporation, e.g. Delaware press f11 to proceed] corporation, whose address is [Type address of contractor, press f11 to proceed].

## 1 RECITALS

1.1 The City desires to use the services of the Contractor for the purposes of providing [Type description of services to be provided, press f11 to proceed].

1.2 The Contractor has agreed to provide the services outlined in the Contractor's Proposal, upon the terms and conditions set forth in this Contract. The Contractor will perform no service under this Contract until direction from an authorized City employee is issued and received by Contractor.

## 2 STATION OF WORK

The Contractor shall provide and furnish at its own proper cost and expense all materials, machinery, equipment, tools, superintendence, labor, insurance and other accessories and services necessary to provide services in strict accordance with the conditions and prices stated in the Contract and other documents; the Contractor shall do everything required by the Contract.

## 3 TIME OF COMMENCEMENT AND SUBSTANTIVE COMPLETION

The services to be provided under this Contract shall commence within [Type number of days, press f11 to proceed] calendar days from [enter date, then press f11 to proceed], and shall continue through [Type date, press f11 to proceed], with the option of [enter number of years, then press f11 to proceed] additional renewals, on an annual basis, upon agreement of both parties.

## 4 PRICE

The City will pay the Contractor for the performance of this Contract, a total of [Type dollar amount, press f11 to proceed] **DOLLARS** for the total quantities of Work performed as stipulated in the Contractor's Proposal.

## 5 FINANCIAL OBLIGATIONS OF CITY

This Contract does not create a multiple fiscal year direct or indirect debt or other financial obligation. Each request for service shall incur a concurrent debt for that request only. All financial obligations of the City under this Contract are contingent upon appropriation, budgeting, and availability of specific funds to discharge such obligations.

## 6 CONTRACT DEFINED

This Contract incorporates, herein by reference, the terms and conditions of the following documents. If there is a conflict among the documents, their terms and conditions shall prevail in the following order:

6.1 Change Orders

6.2 Services Contract

6.3 Request for Proposals

6.4 Contractor's Proposal

6.5 Certificate of Insurance naming the City of Longmont as additional insured

6.6 Workers' Compensation Certificate

**7 SERVICE OF NOTICES**

All required notices shall be deemed to have been validly given if delivered in person or by first class mail to the City at the following address:

CITY OF LONGMONT
Purchasing & Contracts Division
350 Kimbark Street
Longmont, CO 80501

**8 COMPLIANCE WITH THE LAW**

This Contract shall be governed and construed in accordance with the laws of the State of Colorado. Venue and jurisdiction for any court action filed regarding this Contract shall be in either Boulder County Colorado or the United States District Court for Colorado. The Contractor will perform all obligations under this Contract in strict compliance with all federal, state, and municipal laws, rules, statutes, charter provisions, ordinances, and regulations, especially sections of the Occupational Safety and Health Administration (OSHA) regulations, latest revised addition, which provide for job safety and health protection for workers, applicable to the performance of the Contractor under this Contract. The City assumes no duty to insure that the Contractor follows the safety regulations issued by OSHA.

**9 INSURANCE**

The Contractor shall not begin any work until the Contractor proves to the City's Purchasing and Contracts Division that it has obtained, at Contractor's own expense, all required insurance as specified below. Liability insurance must be of the occurrence form. Deviations from the requirements listed below must be submitted to and approved by the City's Risk Manager.

9.1 COMMERCIAL GENERAL AND AUTOMOBILE LIABILITY insurance must cover bodily injury, property damage and personal injury with limits of no less than $1,000,000 per occurrence. The Contractor shall cause the City to be named as an “Additional Insured”.

9.2 WORKERS' COMPENSATION coverage must be provided, as statutorily required for persons performing work under this Contract. Contractor must provide City with proof of Employer's Liability coverage with limits of at least $500,000. Contractor shall require any subcontractor hired by the Contractor to carry Workers' Compensation and Employer's Liability coverage.

9.3 CERTIFICATE OF INSURANCE: As evidence of the insurance coverages required by this Contract, prior to the effective date of this Contract, the Contractor and their subcontractors, shall furnish a certificate of insurance to:

CITY OF LONGMONT
Purchasing and Contracts Division
350 Kimbark Street
Longmont, CO 80501

9.4 The Certificate shall include the City of Longmont, its officers, agents and employees as “Additional Insureds” on all General Liability and Automobile Liability policies. Insurance coverages shall be obtained from insurance companies authorized to do business in the State of Colorado. If the Contractor or their subcontractors are qualified self-insureds under the laws of the

State of Colorado appropriate declarations of self-insurance may be substituted.

9.5 CONTINUATION OF COVERAGE: The Contractor shall not cancel, materially change or fail to renew insurance coverages. The Contractor shall notify the Purchasing and Contracts Division of any material reduction or exhaustion of aggregate limits. Any insurance bearing on adequacy of performance (warranty or guarantee) shall continue after completion of the contract for the full guaranteed period. If any policy lapses or is canceled before final payment by the City to the Contractor and if the Contractor fails immediately to procure other insurance as specified, the City may deem such failure to be a breach of this Contract.

9.6 RESPONSIBILITY FOR PAYMENT OF DAMAGES: Nothing contained in these insurance requirements shall limit the Contractor's responsibility for damages resulting from Contractor's operations under this contract.

**10 INDEMNITY**

The Contractor hereby releases and agrees to indemnify, defend and save harmless the City and its agents from and against all claims, actions, causes of action, demands, judgments, costs, expenses and all damages of every kind and nature, incurred by and on behalf of any person or corporation whatsoever, predicated upon injury to or death of any person or loss of or damage to property of whatever ownership, including the parties to this Contract and their employees, and arising out of or connected with, in any manner, directly or indirectly, the Contractor's operations.

**11 STATUS OF CONTRACTOR**

The Contractor shall perform all work under this Contract as an independent contractor and not as an agent or employee of the City. The Contractor will not be supervised by any employee or official of the City nor will the Contractor exercise supervision over any employee or official of the City. The Contractor shall not represent that the Contractor is an employee or agent of the City in any capacity. The Contractor shall supply all personnel, buildings, equipment and materials at Contractor's sole expense. **The Contractor is not entitled to City Workers' Compensation benefits and is obligated to pay federal and state income tax on money earned pursuant to this Contract.** This Contract is not exclusive; the Contractor may contract with other parties.

**12 PROVISIONS CONSTRUED AS TO FAIR MEANING**

The provisions of this Contract shall be construed as to their fair meaning, not for or against any party based upon any attributes to such party of the source of the language in question.

**13 HEADINGS FOR CONVENIENCE**

All headings, captions and titles are for convenience and reference only and of no meaning in the interpretation or effect of this Contract.

**14 NO IMPLIED REPRESENTATIONS**

No representations, agreements, covenants, warranties, or certifications, express or implied, shall exist as between the parties, except as specifically set forth in this Contract.

**15 NO THIRD PARTY BENEFICIARIES**

None of the terms or conditions in this Contract shall give or allow any claim, benefit, or right of action by any third person not a party hereto. Any person other than the City or the Contractor receiving services or benefits under this Contract shall be only an incidental beneficiary.

**16 WAIVER**

No waiver of any breach or default under this Contract shall be a waiver of any other or subsequent

breach or default.

**17 TERMINATION**

Either party may terminate this Contract by giving the other party thirty days written notice of such termination. The Contractor will then be paid for satisfactory work up to the date of termination. The City may terminate this Contract without cause; the Contractor may terminate this Contract only for cause.

**18 TRANSFERENCE AND AMENDMENTS**

The Contractor may not transfer this Contract to a third party nor in any way amend this Contract without prior written consent of the City.

**19 GRATUITIES**

**19.1 It is unlawful and unethical for any person to offer, give or agree to give any City employee, City official or former City employee, or for any City employee, City official or former City employee to solicit, demand, accept or agree to accept from another person, a gratuity or an offer of employment in connection with any decision, approval, disapproval, recommendation or preparation of any part of a program requirement or a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing or in any other advisory capacity in any proceeding or application, request for ruling, determination, claim or controversy, or other particular matter, pertaining to any program requirement or a contract or subcontract, or to any solicitation or proposal therefore.**

**19.2 It is unlawful and unethical for any payment, gratuity or offer of employment to be made by or on behalf of a subcontractor under a contract to the prime contractor or higher tier subcontractor of any person associated therewith, as an inducement for the award of a subcontract or order.**

**20 RESERVATION OF RIGHT TO BAR PERSONS FROM THE WORK AND SITE**

The City reserves the right to bar any person, including employees of the Contractor and Subcontractors, from the City's Work site. This shall not be treated as a request for the employee's termination but a request that the employee not be assigned to work on the City Work site. No increase in contract time or price is authorized.

**21 DAMAGES FOR BREACH OF CONTRACT**

In addition to any other legal or equitable remedy the City may be entitled to for a breach of this Contract, if the City terminates this Contract, in whole or in part, due to Contractor's breach of any provision of this Contract, Contractor shall be liable for actual and consequential damages to the City.

**22 LIVABLE WAGE REQUIRED**

For new contracts for provision of services issued after January 1, 2023, Contractor must pay at least a minimum livable wage of $21.07 per hour or $43,825.60 annually, not including fringe benefits, to full time employees of the Contractor for work performed and billed under this Contract. The City may annually adjust the required livable wage to account for inflation. This requirement will not apply to contracts that are exempt from the Purchasing Code (L.M.C. §4.12) or when using non-City funds.

Contractor certifies that it will comply with this wage requirement. The minimum livable wage requirement shall be binding upon the assignees and successors in interest of this Contract.

The City reserves the right to audit Contractor's records to ensure compliance with this provision. If

the City finds that the Contractor has violated this provision, the City shall notify the Contractor in writing. The Contractor will have 30 days to come into compliance including the payment of any back wages required. If the Contractor remains out of compliance after 30 days, the City may terminate the Contract and pursue available remedies for breach of contract.

EXECUTED this _____ day of _____, _____.

**CONTRACTOR**

By:_____ Date:_____

Title:_____

**CITY OF LONGMONT**

By:_____ Date:_____

Title:_____

APPROVED AS TO
INSURANCE PROVISIONS:

By:_____ Date:_____

Title:_____

APPROVED AS TO FORM:

By:_____ Date:_____

Title:_____

**ATTACHMENT E: CONSTRUCTION CONTRACT GENERAL CONDITIONS**

**Construction Contract General Conditions**
**Table of Contents**


Construction Contract General Conditions

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Construction Contract
Notice of Award
Performance Bond
Labor and Material Payment Bond
Notice to Proceed
Request for Payment
Change Order
Notice of Substantial Completion
Contractor's Certificate and Release
Notice of Construction Acceptance
Notice of Warranty Work
City Project Final Acceptance

**CITY OF LONGMONT**

**CONSTRUCTION CONTRACT GENERAL CONDITIONS**

**SCOPE: Since the General Conditions are general, some conditions may not apply to a particular Project.**

## Article 1--DEFINITIONS AND ABBREVIATIONS

1.1. **Definitions:** Whenever used in the Bidding Documents and Contract Documents, the following terms shall have the following meanings, applicable to both the singular and plural:

1.1.1 **Addenda**: Written changes to the Bidding Documents issued at least two days before the Opening of Bids which modify or interpret the Contract or changes the date set for the Opening of Bids.

1.1.2 **Alternate Bid**: An Alternate Bid is an amount stated in the Bid added to or deducted from the base amount of the Bid when the City accepts a corresponding change in project scope, materials or method of construction described in the Contract.

1.1.3 **Bid**: The proposal the Bidder submits on the prescribed Bid Forms stating the prices for the Work to be performed.

1.1.4 **Bid Forms**: The Bid Proposal, Bid Bond, Bid Schedule, Bidder's Qualifications and Data, Bidder's Officials Data, Non-Collusion Affidavit of Prime Bidder, and Subcontractors and Related Data.

1.1.5 **Bidder**: The person, partnership, or corporation submitting a Proposal for the performance of the Work covered by the Contract.

1.1.6 **Bidding Documents**: The Invitation to Bid, Bid Forms, Information and Instructions to Bidders, Specifications, Drawings, Sample Forms, Special and General Conditions and Addenda (if any).

1.1.7 **Bonds**: Bid Bonds, Performance, and Labor and Material Payment Bonds or other instruments of security, furnished by the Contractor and its Surety according to the Contract.

1.1.8 **Calendar Days**: Includes all days in a month including weekends and holidays.

1.1.9 **Change Order**: A written modification of the Contract, issued after award to the Contractor, authorizing an addition, deletion or revision in the Work within the general scope of the Contract or authorizing an adjustment in the Contract Price or Contract Time, mutually agreed upon between the City and the Contractor.

1.1.10 **City**: The City of Longmont, in the State of Colorado, acting by and through its Mayor, City Council, City Manager, or other authorized representative.

1.1.11 **Completion Date**: The date the Contract specifies the Work is to be completed.

1.1.12 **Contract**: The Construction Contract consisting of the Agreement for a Construction Contract and the incorporated Contract Documents.

1.1.13 **Contract Coordinator**: The authorized representative of the City designated to act for the City in processing the Award of Contracts, maintaining centralized official Contract

documentation, providing administrative liaison/coordination, legal liaison/coordination via City Attorney, and processing of Contract Payment authorizations as approved by the Project Manager.

1.1.14 **Contract Documents**: All the documents expressly incorporated into the Contract by the Agreement for Construction Contract, including but not limited to Addenda, Bid Forms, Change Orders, City Project Final Acceptance, Drawings, General Conditions, Information and Instruction to Bidders, Insurance Certificates, Invitation to Bid, Notice of Award, Notice of Construction Acceptance, Notice to Proceed, Notice of Substantial Completion, Performance and Labor and Material Payment Bonds, Special Conditions, Supplemental Drawings and Schedules, and Technical Specifications.

1.1.15 **Contract Price**: The total monies payable to the Contractor under the terms and conditions of the Contract.

1.1.16 **Contract Time**: The number of days stated in the Contract for the completion of the Project.

1.1.17 **Contractor:** The person, company, firm or corporation contracting with the City to construct, erect, alter, install or repair any work or construction project

1.1.18 **Drawings**: The part of the Contract prepared or approved by the Project Manager showing the characteristics and scope of the Work to be performed.

1.1.19 **Date of Contract**: The execution date in the Agreement for a Construction Contract.

1.1.20 **Day**: A calendar day of twenty-four hours each.

1.1.21 **Field Order**: A written order directing a change in the Project issued by the Project Manager to the Contractor during construction.

1.1.22 **Inspector**: The City's authorized representative assigned to make detailed inspection of the Work performed by the Contractor.

1.1.23 **Notice of Award**: The written notice of the acceptance of the Bid from the City to the successful Bidder.

1.1.24 **Notice of Construction Acceptance**: The written acknowledgment that construction is complete which starts the warranty period.

1.1.25 **Notice of Final Acceptance**: The written acceptance of Work performed under the Contract, following satisfactory conclusion of the warranty period.

1.1.26 **Notice to Proceed**: The written notice by the City to the Contractor authorizing it to proceed with the Work which establishes the Contract commencement and Contract Coordinators.

1.1.27 **Notice of Substantial Completion**: The written notice of the date, as certified by the Project Manager, when the Project or a specified part is sufficiently completed, according to the Contract, so the Project or specified part can be used for the intended purposes.

1.1.28 **Owner**: The City; see 1.1.10.

1.1.29 **Project**: The undertaking to be performed as provided in the Contract.

1.1.30 **Project Manager**: The authorized representative of the City, known as the Project Manager, assigned to the Project to ensure that all Work is performed according to the terms and conditions of the Contract. Also see Article 10, "Project Manager's Responsibilities."

1.1.31 **Shop Drawings**: All Drawings, diagrams, illustrations, brochures, schedules, and other data prepared by the Contractor, a Subcontractor, manufacturer, Supplier or distributor which illustrate how specific portions of the Work will be fabricated or installed.

1.1.32 **Special Conditions**: Additions to the General Conditions containing instructions and conditions peculiar to an individual Project.

1.1.33 **Specifications**: A part of the Contract Documents consisting of written technical description of materials, equipment, construction systems, standards, and workmanship.

1.1.34 **Subcontractor**: Any person, company, firm or corporation, having a subcontract with the Contractor to furnish and perform on-site labor, with or without furnishing materials for the project.

1.1.35 **Supplier**: Any person or organization who supplies materials or equipment for the Work, including that fabricated to a special design, but who does not perform labor at the site.

1.1.36 **Surety**: The entity which is bound with and for the Contractor for the Performance of the Work and for the Labor and Material Bond.

1.1.37 **Unit Price**: An amount stated in the Bid as a price per unit of measurement for materials or services as described in the Contract.

1.1.38 **Work**: The construction and services required by the Contract, whether completed or partially completed, including all other labor, materials, equipment and services provided or to be provided by the Contractor to fulfill the Contractor's obligations. The Work may be the whole or a part of the Project.

1.1.39 **Work Days:** Includes all days in the month the Contractor is permitted to work; excludes weekends and holidays.

1.2 **Abbreviations:** When the following abbreviations appear in the documents, they are defined as follows:

| | |
|---|---|
| AASHTO | American Association of State Highway and Transportation Officials |
| ACI | American Concrete Institute |
| AISC | American Institute of Steel Construction |
| ANSI | American National Standards Institute |
| ASA | American Standards Association |
| ASCE | American Society of Civil Engineers |
| ASME | American Society of Mechanical Engineers |

| | |
|---|---|
| ASTM | American Society for Testing and Materials |
| AWS | American Welding Society |
| AWWA | American Water Works Association |
| CDOT | Colorado Department of Transportation |
| EPA | Environmental Protection Agency |
| MUTCD | Manual on Uniform Traffic Control Devices |
| OSHA | Occupational Safety & Health Administration |
| WW-P | Federal Specifications Prefix |

## Article 2--PRELIMINARY MATTERS

### 2.1 Notice to Proceed

2.1.1 Following the execution of the Contract by the Parties, the Project Manager will give the Contractor written Notice to Proceed with the Work. The Contractor shall begin and continue the Work regularly and without interruption (unless otherwise directed in writing by the Project Manager) with the force necessary to complete the Work within the time stated in the Contract
.

### 2.2 Contractor's Understanding

2.2.1 The Contractor agrees that, by careful examination, it is satisfied as to the nature and location of the Work, the conformation of the ground, the character, quality, and quantity of the materials to be encountered, the character of equipment and facilities needed before beginning and for the Project, the general and local conditions, and all other matters, which can in any way affect the Work under the Contract. No oral agreement with any officer, agent or employee of the City either before or after the execution of the Contract shall affect or change any of the terms or obligations contained in the Contract.

### 2.3 Contractor's Warranty

2.3.1 The Contractor warrants that it has the knowledge, ability, experience, and expertise to perform the Work competently. The Contractor warrants the capacity of the Contractor’s construction plant, personnel, and its ability to complete the Project within the allotted time.

### 2.4 Contractor's License and Permits

2.4.1 The Contractor will obtain all licenses and permits required to do the Work. Whenever necessary, the Contractor will have a Contractor's License with the City by the time of Notice of Award. It will have all permits required by the City, as well as those required by County, State and Federal agencies. The City will not charge for City permits, although a charge may apply for Contractor's License or for use fees. Subcontractors shall also have a City of Longmont Contractor's License and the proper permits. The City will not charge for the Subcontractor's permits.

## 2.5 Schedules, Reports, and Records

2.5.1 Before beginning construction, the Contractor shall submit to the Project Manager a Construction Progress Schedule, on a form approved by the Project Manager, showing all Work the Contractor and all Subcontractors will perform. The Project Manager may require the Contractor to substitute a Critical Path Method schedule (CPM), or bar graph type schedule. The Special Conditions will state when a CPM network schedule is required.

2.5.2 The schedule shall be in enough detail for the Project Manager to readily determine the Work to be performed each day. When requested by the Project Manager, the Contractor shall update the schedule.

2.5.3 Before beginning construction, the Contractor shall give the Project Manager the dates it expects to submit Shop Drawings, manufacturers' details, catalog cuts or other required special detail Drawings and also the dates of beginning manufacture, testing, delivery and installation of special equipment and materials.

## 2.6 Contractor's Address

2.6.1 The address in the Bid Proposal is designated as the place to which all communications to the Contractor will be delivered or mailed. The delivery at the listed address, in person or by certified mail, of any notice, letter or other communication to the Contractor, is adequate service upon the Contractor, and the date of the service is the date of delivery.

## 2.7 Notification of Utility Owners

2.7.1 The Contractor shall cooperate with Utility Owners to mitigate damage whenever the Contractor's work affects their utilities.

2.7.2 The Contractor shall not excavate without first notifying the owners, operators or association of owners and operators having underground facilities in the area of such excavation. Notice may be given in person, by telephone or in writing. Notice to an association is notice to each member of the association.

2.7.3 Contractor shall give notice of the commencement, extent, and duration of the excavation work at least two business days before beginning Work.

2.7.4 If the Project affects fences, landscaping, mailboxes, driveways and other improvements, the Contractor shall notify the affected property owners or occupants IN WRITING at least two business days before beginning Work. The Contractor shall cooperate with the owners or occupants to reduce inconvenience where reasonably possible.

## 2.8 Department of Revenue Forms

2.8.1 It is the responsibility of the Contractor to apply for a Colorado State Sales and Use Tax Exemption Certificate from the State Dept. of Revenue and to use it when purchasing materials or supplies in connection with the Project.

2.8.2 The City's Tax Exemption Numbers are to be used only when obtaining the Contractor's own Tax Exemption Certificate for each specific City project:

a. Federal Tax Exemption Number: 84-600-608
b. State of Colorado Tax Exemption Number: L98-03477

## Article 3--DRAWINGS AND SPECIFICATIONS

### 3.1 Intent of Drawings and Specifications

3.1.1 In the Drawings and Specifications, the City intends that the Contractor furnish all superintendence, labor, materials, tools, equipment, supplies, machinery and transportation necessary for the proper execution of the Work unless specifically noted otherwise. The Contractor shall do all the Work shown on the Drawings and described in the Specifications and all incidental Work reasonably necessary to complete the Project in a substantial and acceptable manner, and to complete fully the Work, ready for use, by the City.

3.1.2 The Contractor shall complete all Work according to the Specifications and Plans, and in compliance with applicable laws of Colorado and ordinances of the City.

3.1.3 In interpreting the Contract, words describing materials or work having a well-known technical or trade meaning, unless otherwise specifically defined, will be construed according to well-known meanings as recognized by engineers, architects, and the trades.

3.1.4 When the Contract refers to a provision of the General Conditions or another Contract Document, the Contract means the provision as amended or supplemented by other provisions of the Contract.

3.1.5 When the Specifications state the words "as directed," or "as required," or "as permitted," or words of like meaning, it is understood that the direction, requirement or permission of the Project Manager is intended. Similarly, the words **approved, acceptable or satisfactory** shall refer to approval by the Project Manager.

3.1.6 The Contract Documents are intended to be complementary, and Work called for on any Drawing and not mentioned in the Specifications, or Work described in the Specifications and not shown on any Drawing, is included under the Contract as if set forth in both the Specifications and Drawings.

### 3.2 Copies of Drawings and Specifications Furnished

3.2.1 The Project Manager will furnish to the Contractor, free of charge, four copies of Drawings and Specifications of the Work. All additional copies will be furnished at reproduction costs.

### 3.3 Discrepancies in Drawings

3.3.1 Contractor shall immediately report any discrepancies found between the Drawings and Specifications and site conditions or any errors or omissions in the Drawings or Specifications to the Project Manager, who shall promptly correct such error or omission IN WRITING. Any affected Work done by the Contractor after discovery of such discrepancies, errors or omissions and affected by those is done at the Contractor's risk. In all cases, the Project Manager shall decide the intent of the Drawings and Specifications. The decision is final.

### 3.4 Dimensions

3.4.1 Figured dimensions shall govern over scaled dimensions.

### 3.5 Drawings and Specifications at Job Site

3.5.1 The Contractor shall keep one complete set of all Drawings and Specifications at the job-site, available to the Project Manager or the Manager's representative at all times.

## 3.6 Shop Drawings

3.6.1 The Contractor shall provide Shop Drawings, settings, schedules, and such other Drawings as may be necessary for the prosecution of the Work in the shop and in the field as required by the Drawings, Specifications or Project Manager's instructions.

3.6.2 The Contractor shall submit for approval four reproducible copies of all Shop Drawings and descriptive data as applicable showing all features not fully detailed on the Contract Plans but essential for a completely coordinated installation.

3.6.3 The City's approval of Shop Drawings indicates only that the type and kind of equipment, general method of construction or detailing are satisfactory, but the Contractor may not construe the approval as a complete check. The Contractor has the responsibility for incorporating into the Work satisfactory materials and equipment meeting the requirements of the Contract Plans and Specifications, the proper dimensions, and the detailing of connections.

3.6.4 The review of Shop Drawings is only to check for compliance with the design concept of the Project and general compliance with the Contract Documents. Approval does not indicate the waiver of any contract requirement. Changes in the Work are authorized only by separate written Change Order.

## 3.7 Record Documents

3.7.1 The Contractor shall keep one record copy of all Addenda, Change Orders, Drawings, Field Orders, Modifications, and Shop Drawings and Specifications in good order. The Contractor shall record any changes made during construction on the record copies. The Contractor shall make a set of "Record Drawings" by marking this set of prints with all changes from the original Drawings as bid, including all Change Orders, alignment changes, depth changes of underground pipes and utilities, and all other items that are not the same as originally drawn. The Contractor shall keep the Record Drawings up to date as the Project progresses. The Project Manager may require, as a condition of the approval of the monthly progress payment, periodic inspection of the Record Drawings. The Contractor will deliver the Record Drawings to the Project Manager upon completion of the Project before Final Payment.

## 3.8 Differing Site Conditions

3.8.1 The Contractor shall promptly, before such conditions are further disturbed, notify the Project Manager in writing of:

3.8.1.1 Subsurface or latent physical conditions at the job-site differing materially from those indicated in the Contract; or

3.8.1.2 Unknown physical conditions at the job-site, of an unusual nature, differing materially from those ordinarily encountered and generally recognized as inherent in Work of the character provided for in the Contract.

3.8.2 Upon receipt of written notification from the Contractor of alleged differing site conditions, the Project Manager shall promptly investigate the conditions and if it finds the conditions materially differ, and so cause an increase or decrease in the Contractor's cost of or the time required for performance of any part of the Work under the Contract, an equitable adjustment will be made and the Contract modified in writing as provided for in Article 11 of these General Conditions.

3.8.3 No claim will be allowed under this Article unless the Contractor has given the written notice required in Article 3.8.1.

3.8.4 No claim will be allowed under this Article if Final Payment has been made.

3.9 **Surveys**

3.9.1 The Project Manager has the option to develop and arrange for detail surveys through a separate contract if deemed desirable or necessary and if specifically noted as such in the Special Conditions, otherwise the Contractor shall provide all survey required to construct the Project according to the Project documents. The Contractor assumes full responsibility for construction according to the proposed lines and grades.

3.9.2 The Contractor shall carefully protect all monuments and property markers from disturbance or damage.

**Article 4--AVAILABILITY OF RIGHT-OF-WAY**

4.1 **Acquisition of Right-of-Way**

4.1.1 Before issuance of Notice to Proceed, the City shall obtain all land and right-of-way necessary for carrying out and completion of the Work to be performed pursuant to the Contract, unless otherwise mutually agreed.

4.1.2 The City shall provide to the Contractor information which delineates and describes the lands owned and rights-of-way acquired, when necessary. The Contractor shall confine its operations within the areas designated by the Project Manager.

4.2 **Access to Right-of-Way**

4.2.1 The City will provide right of access to all places necessary for the performance of the Work. Nothing contained in the Contract shall give the Contractor exclusive occupancy of the area provided by the City. The City, other Contractors of the City and utility companies may enter upon or occupy portions of the land furnished by the City for any purpose, but without unreasonably interfering with the completion of the Project. Joint occupancy or use of the territory shall not be the basis of any claim for delay or damages.

4.3 **State Highway Right-of-Way**

4.3.1 If any part of the Project is within the right-of-way of a roadway under the jurisdiction of the Colorado Division of Transportation (CDOT) the City shall obtain the necessary permits from CDOT to perform such Work. The Contractor shall conform to all the requirements and restrictions indicated on the permit. The Contractor shall restore the area to its original condition, including reseeding if necessary, at the completion of the Project.

4.4 **Temporary Storage Facilities**

4.4.1 The Contractor may secure at its own expense, and without liability to the City, use of any additional land that the Contractor may desire for temporary construction activities, and facilities, or storage of materials.

## Article 5--BONDS AND INSURANCE

### 5.1. Performance Bond and Labor and Material Payment Bond

5.1.1. The Contractor shall, within **ten** days after receipt of the Notice of Award, and before the commencement of any operations hereunder execute the Contract and furnish the City with separate Performance, and Labor and Material Payment Bonds each in a penal sum equal to the amount of the Contract Price, conditioned upon the Contractor's performance of all undertakings, covenants, terms, conditions, and agreements of the Contract, and upon the Contractor's prompt payment to all persons supplying labor and materials in the prosecution of the Work provided by the Contract. The Contractor and a corporate Bonding company, licensed to transact such business in the State of Colorado and acceptable to the City, shall execute the Bonds. The Contractor bears the expense of these Bonds. If at any time the Surety on such Bonds becomes irresponsible or loses its right to do business in the State of Colorado, the City may require another Surety, which the Contractor shall furnish within **ten** days after receipt of written notice to do so. Evidence of authority of an attorney-in-fact acting for the corporate Surety shall be provided in the form of a certificate as to its power of attorney and to the effect that it is not terminated and remains in full force and effect on the date of the Bonds. The form of the Bonds is subject to the City's approval.

### 5.2. Insurance

5.2.1. The insurance requirements contained in the Contract shall not limit or redefine the obligations of the Contractor as provided elsewhere in the Contract.

5.2.2. Only insurance companies with authority to issue policies in Colorado may provide insurance coverage under the Contract.

### 5.3. Insurance Requirements

5.3.1. The Contractor shall purchase and maintain, for the full period of the Contract, including any warranty period, at the Contractor's or Subcontractor's sole expense, insurance policies providing coverage as follows:

5.3.1.1. Comprehensive Auto Liability: Comprehensive form, including owned, hired and non-owned automobiles. The limits of coverage shall be at least the City's maximum liability under the Colorado Governmental Immunity Act (§24-10-110, C.R.S., as amended).

5.3.1.2. Comprehensive General Liability: Commercial general liability insurance covering personal injury, bodily injury and property damage; Explosion & Collapse; Underground Hazard; Products/Completed Operations; Contractual Liability; Broad Form Property Damage; and City's & Contractor's Protective. The limits shall be at least the City's liability limits under the Colorado Governmental Immunity Act (§24-10-110, C.R.S., as amended). All policies shall be of the occurrence form. Any deviation from the occurrence form shall be approved by the City of Longmont Risk Manager. A copy of each policy and endorsement must be submitted to the Risk Manager with each certificate of insurance when a deviation is requested.

5.3.1.3. Workers' Compensation and Employer's Liability: as statutorily required for persons performing work under the Contract. Any Subcontractor hired by the Contractor shall also carry Workers' Compensation and Employers' Liability coverage. Employer's liability insurance shall have a minimum coverage of $1,000,000 per occurrence.

5.3.1.4. Builder's Risk: a Builder's Risk Policy is required for contracts in excess of $100,000 that involve the construction of a new building and for contacts in excess of $50,000 that involve the renovation of an existing building. The Contractor shall cause its insurance provider to name the City as an additional insured.

5.3.1.5. Installation Floater: an Installation Floater Policy is required for contracts involving the installation of unique or customized equipment and for contracts involving installations that in the judgment of the City threaten to damage existing structures. The Contractor shall cause its insurance provider to name the City as an additional insured.

5.3.2 **Additional Insured Clause**: The insurance coverage required for the performance of the Contract must be endorsed to name the City of Longmont, Colorado, a municipal corporation, its council members, officers, agents, employees and volunteers, as additional insured with respect to the activities performed under the Contract.

5.3.3 **Primary Insurance Endorsement:** Pursuant to an endorsement submitted to and approved by the City's Risk Manager, all coverage must specifically state the insurance coverage for the Project. In no event shall an additional endorsement in the form of GL20.09 (1973-01 ed.) or any similar form be submitted or accepted.

5.3.4 **Certificate of Insurance:** As evidence of the insurance coverage required by the Contract, the Contractor shall furnish a certificate of insurance to:

Purchasing and Contracts Division
350 Kimbark Street
Longmont, CO 80501

The certificate will specify parties who are additional insured. If the Contractor is self-insured under the laws of the State of Colorado, Contractor shall provide appropriate declarations of coverage.

5.3.5 **Continuance of Insurance:** For the term of the Contract, which includes any warranty periods, the Contractor shall not cancel, materially change or fail to renew the insurance coverage, and agrees to notify the City of Longmont's Purchasing and Contracts Division of any material reduction or exhaustion of aggregate policy limits. If the Contractor fails to purchase or maintain the insurance coverage set forth in these General Conditions, the City shall have the right, but not the obligation, to procure such insurance coverage at the Contractor's expense.

**Article 6--INDEMNIFICATION**

6.1 **Responsibility for Damage Claims**: The Contractor shall indemnify, save harmless, and defend the City, its officers and employees, from and in all suits, actions or claims of any character brought because of: any injuries or damage received or sustained by any person, persons or property because of operations for the City under the Contract; the Contractor's failure to comply with the provisions of the Contract; the Contractor's neglect of materials while constructing the Work; because of any act or omission, neglect or misconduct of the Contractor; because of any claims or amounts recovered from any infringements of patent, trademark, or copyright, unless the design, device, materials or process involved are specifically required by Contract; from any claims or amount arising or recovered under the "Workers' Compensation Act," by reason of the Contractor's failure to comply with the act; pollution or environmental liability; or any failure of the Contractor to comply with any other law, ordinance, order or decree. The City may retain so much of the money due the Contractor under the Contract, as the City considers necessary for such purpose, for the City's use. If no money is due, the Contractor's Surety may be held until such

suits, actions, claims for injuries or damages have been settled. Money due the Contractor will not be withheld when the Contractor produces satisfactory evidence that it and the City are adequately protected by commercial general liability and property damage insurance.

6.1.1 The Contractor also agrees to pay the City all expenses incurred to enforce this "Responsibility for Damage Claim" agreement and if the insurer of the Contractor fails to provide or pay for the defense of the City of Longmont, its officers and employees, as additional insured, the Contractor agrees to pay for the cost of that defense.

6.1.2 Nothing in the **INSURANCE PROVISIONS** shall limit the Contractor's responsibility for payment of claims, liabilities, damages, fines, penalties, and costs resulting from its performance or nonperformance under the Contract.

## Article 7--CONTRACTOR'S RESPONSIBILITIES

### 7.1 Control of the Work

7.1.1 When the Contractor is not present on the Project it shall have a Superintendent or other representative acceptable to the City present who shall, during the absence of the Contractor, be its representative and have immediate charge of the Project. The Superintendent or representative shall have the Contractor's authority to act in its absence.

7.1.2 Any person employed on the Project who fails, refuses or neglects to obey the Superintendent or Contractor's other designated representative, shall, upon the order of the Project Manager, be at once removed from the Project and not again employed on any part of the Project.

### 7.2 General Use of Subcontractors

7.2.1 The Contractor may utilize the services of specialty Subcontractors on those parts of the Work which, under normal contracting practices, are performed by specialty Subcontractors.

7.2.2 The Contractor shall not sublet or subcontract any portion of the Work to be done under the Contract until approval of such action has been obtained from the City.

7.2.3 The Contractor is fully responsible to the City for the acts and omissions of its Subcontractors, and of persons either directly or indirectly employed by them.

7.2.4 Nothing contained in the Contract creates any contractual relationship between any Subcontractor and the City.

7.2.5 The Contractor shall put appropriate provisions in all Subcontracts relative to the Work to bind Subcontractors to the terms of the Contract insofar as applicable to the Work of Subcontractors, and to give the Contractor the same power to terminate any Subcontractor that the City may exercise over the Contractor.

7.2.6 The Contractor shall make available to each proposed Subcontractor, before the execution of the subcontract agreement, copies of the Contract Documents to which the Subcontractor will be bound, and, upon written request of the Subcontractor, identify to the Subcontractor terms and conditions of the proposed subcontract agreement which may be at variance with the Contract Documents. Subcontractors shall similarly make copies of applicable portions of such documents available to their respective proposed Sub-Subcontractors.

## 7.3 Materials and Equipment Furnished by the Contractor

7.3.1 The Contractor shall furnish and pay the cost of all of the necessary materials not furnished by the City, all the superintendence, labor, tools, equipment, installation, maintenance, dismantling and removal of materials, supplies, temporary facilities, machinery and transportation. The Contractor shall perform all the work required for the construction of all structures listed and itemized under the Bid Schedule of the Bid in strict accordance with the plans, Specifications and requirements and any amendments thereto and supplemental plans and Specifications hereafter approved.

7.3.2 Unless otherwise provided for in the Specifications, all workmanship, equipment, materials, and articles incorporated in the Project are to be the best of their respective kinds, new and undamaged.

7.3.3 Materials, supplies or equipment to be incorporated into the Project shall not be purchased by the Contractor or any Subcontractor subject to chattel mortgage or under a conditional sales contract or other agreement by which an interest is retained by the seller.

7.3.4 The Contractor shall furnish the Project Manager, for the Manager's approval, the name of the manufacturer of machinery and other equipment for materials the Contractor contemplates incorporating in the Project. The Contractor shall also furnish information on capacities, efficiencies, sizes, etc., and other information as may be required by the Project Manager. The Contractor shall submit samples for approval when requested. Machinery, equipment, materials, and articles installed or used without the Project Manager's approval are at the risk of subsequent rejection.

7.3.5 The Contractor shall give the Project Manager three copies of all shop manuals, operating manuals, parts lists, classifications, catalog cuts, Specifications, warranties and guarantees for all equipment and machinery installed.

7.3.6 **Consideration of a product as an "equal" by the Project Manager may require that the manufacturer of such product furnish guarantees that extend beyond the usual product warranty time.** The refusal of a manufacturer to provide such guarantees is sufficient reason for rejecting the product.

## 7.4 Patents and Copyrights

7.4.1 The Contractor shall provide a suitable legal agreement with the patentee giving the Contractor the right to use any design, device, material, or process covered by letters patent or copyright, in the construction of the Project when the use has not been specified or required by the Drawings and Specifications. The Contractor shall file a copy of this agreement with the City, if requested. The Contractor and the Surety shall indemnify, defend and save harmless the City from all claims for infringements on patented design, devices, material, process or any trademark or copyright during the prosecution or after the completion of the Project.

7.4.2 If any design, device, material, process or product of a particular manufacturer covered by letters patent or copyright is specified for use by the Drawings and Specifications, the City is responsible for any claims for infringement by reason of the use of such design, device, material, process or product of a particular manufacturer; but the Contractor shall pay any royalties or license fees required.

## 7.5 Existing Utilities

7.5.1 The City has collected and shown on the Drawings available information on the location of existing underground, surface and overhead structures and utilities. However, the

City does not guarantee the results of the investigations are accurate or complete. It is the Contractor's responsibility to verify all locations of existing structures and utilities shown on the Drawings and to ascertain whether any other structures and utilities exist.

7.5.2 The Contractor shall support, and protect from injury, existing power lines, telephone lines, water mains, gas mains, sewers, cables, conduits, ditches, curbs, walks, pavements, driveways, and other structures in the vicinity of the Project which are not authorized to be removed until completion of the Project.

## 7.6 Coordination with Utilities Departments

7.6.1 The Contractor shall always coordinate its Work with the City of Longmont Water/Wastewater Utilities Department. If it becomes necessary to close portions of any water or sewer system due to construction operations, a minimum of 48 hours notification shall be given the Utilities Department and whenever possible one week's notice should be given. It is the Contractor's responsibility to ensure continuity of the utilities.

7.6.2 If City owned electrical utilities are involved, the Contractor shall coordinate its Work with the City of Longmont Electric Utility Department. Contractors should make every effort to give the Electric Department one week's notice of upcoming construction involving the electric services; a minimum of 48 hours notification shall be given to the Electric Utility Department.

7.6.3 All electrical power and water from City owned utilities required for the Project will be provided at the Contractor's expense.

## 7.7 Laws and Ordinances

7.7.1 The Contractor shall perform all obligations under the Contract in strict compliance with all federal, state, and municipal laws, rules, statues, charter provisions, ordinances, and regulations, applicable to the performance of the Contractor under the Contract.

7.7.2 The Contractor shall obtain all other permits and licenses required in the prosecution of the Work.

7.7.3 IT IS UNLAWFUL AND UNETHICAL FOR ANY PERSON TO OFFER, GIVE OR AGREE TO GIVE ANY CITY EMPLOYEE, CITY OFFICIAL OR FORMER CITY EMPLOYEE, OR FOR ANY CITY EMPLOYEE, CITY OFFICIAL OR FORMER CITY EMPLOYEE TO SOLICIT, DEMAND, ACCEPT OR AGREE TO ACCEPT FROM ANOTHER PERSON, A GRATUITY OR AN OFFER OF EMPLOYMENT IN CONNECTION WITH ANY DECISION, APPROVAL, DISAPPROVAL, RECOMMENDATION OR PREPARATION OF ANY PART OF A PROGRAM REQUIREMENT OR A PURCHASE REQUEST, INFLUENCING THE CONTENT OF ANY SPECIFICATION OR PROCUREMENT STANDARD, RENDERING OF ADVICE, INVESTIGATION, AUDITING OR IN ANY OTHER ADVISORY CAPACITY IN ANY PROCEEDING OR APPLICATION, REQUEST FOR RULING, DETERMINATION, CLAIM OR CONTROVERSY, OR OTHER PARTICULAR MATTER, PERTAINING TO ANY PROGRAM REQUIREMENT OR A CONTRACT OR SUBCONTRACT, OR TO ANY SOLICITATION OR PROPOSAL THEREFOR.

7.7.4 IT IS UNLAWFUL AND UNETHICAL FOR ANY PAYMENT, GRATUITY OR OFFER OF EMPLOYMENT TO BE MADE BY OR ON BEHALF OF A SUBCONTRACTOR UNDER A CONTRACT TO THE PRIME CONTRACTOR OR HIGHER TIER SUBCONTRACTOR OF ANY PERSON ASSOCIATED THEREWITH, AS AN INDUCEMENT FOR THE AWARD OF A SUBCONTRACT OR ORDER.

## 7.8 Protection of Persons

7.8.1 It is a condition of the Contract, and the Contractor shall make a condition of each Subcontract entered into pursuant to the Contract, that the Contractor and any Subcontractor shall not require any laborer, mechanic or other person employed in performance of the Contract to work in surroundings or under working conditions which are unsanitary, hazardous or dangerous to health or safety. The Contractor shall comply with all applicable safety rules and regulations adopted by the United States Department of Labor Occupational Safety and Health Administration (OSHA), the Industrial Commission of the State of Colorado or the City of Longmont, whichever is most restrictive. The City assumes no duty to insure that the Contractor follows the safety regulations issued by OSHA or the State of Colorado.

7.8.2 For operations involving trenching, excavation or any other underground construction, the Contractor's attention is specially directed to and its Work shall conform to the Construction Safety and Health Regulations, Part P Subparagraph 1926.650-653 by OSHA, latest revision.

7.8.3 The Contractor shall always, whether or not so specifically directed by the Project Manager, take necessary precautions to ensure the protection of the public. The Contractor shall furnish, erect, and maintain at its own expense all necessary precautions for the protection of the Work and safety of the public through and around its construction operations.

## 7.9 Protection of Property

7.9.1 The Contractor shall continuously and adequately protect the Work from damage, injury or loss arising in connection with the Contract. It shall repair or replace at its expense any such damage, injury or loss, except such as may be directly due to error in the Contract or caused by agents or employees of the City. It shall provide and maintain at its expense all passageways, barricades, guard fences, lights, and other protection facilities required by public authority or local conditions.

7.9.2 The Contractor is responsible for protection of all public and private property on and adjacent to the site of the Work. It shall use every precaution necessary to prevent damage to curbs, sidewalks, driveways, trees, shrubs, sod, mailboxes, fences, and other private and public improvements. It shall protect carefully from disturbance or damage all land monuments and property markers until an authorized agent has witnessed or otherwise referenced their locations, and shall not remove them until directed.

## 7.10 Protection of Historical Sites

7.10.1 When the Contractor's excavating operations encounter remains of prehistoric people's dwelling sites or artifacts of historical or archeological significance, the Contractor shall temporarily discontinue the operations, and immediately advise the Project Manager. The Project Manager will contact archeological authorities to determine the disposition of the items in question. When directed, the Contractor shall excavate the site in such a manner as to preserve the artifacts encountered and remove them for delivery to the custody of the proper authorities. Such excavation is considered, and paid for, as extra Work.

## 7.11 Responsibility to Repair

7.11.1 Should any existing property be damaged, the Contractor shall immediately notify the owner of such property. Unless authorized in writing by the owner of the property or directed by the Project Manager, the Contractor shall not attempt to make repairs. Written

authorization from the owner to make repairs must be so worded as to save the City harmless from any responsibility whatsoever relative to the sufficiency of the repairs. The Contractor shall give the Project Manager a copy of the written authorization to make repairs.

7.11.2 When any direct or indirect damage or injury is done to any public or private property or utility by or on account of any act, omission, neglect or misconduct in the execution of the Work, the Contractor shall restore the damaged property at its own expense to a condition equal to or better than that existing before such damage or injury.

7.11.3 The Contractor shall replace any materials and equipment lost, stolen, damaged or otherwise rendered useless during the performance of Work on the Project.

## 7.12 Traffic Control

7.12.1 The Contractor shall arrange Work to disrupt traffic as little as possible. All traffic Control Devices used shall conform to the latest edition of the Manual of Uniform Traffic Control Devices, (MUTCD). Except as otherwise permitted, two way traffic shall be maintained at all times in public roadways. At least 72 hours before starting any Work in City right-of-way, the Contractor shall submit a detailed traffic control plan for review from the Public Works Division. The approval shall establish the requirements for closures related to the number of lanes and time of day lanes or streets may be closed. The Traffic Control Plan (TC Plan) shall include the name of the contractor, the name and phone number of the person responsible for the traffic control, the date for beginning and ending construction activity and hours of operation expected. The TC Plan should show the widths of streets involved, traffic lanes, the size and location of the Work area with distances from the curb, distance to the nearest intersection and the type and location of traffic control devices. No changes to the TC Plan shall be permitted without prior approval by the Public Works Division.

7.12.2 The Contractor shall furnish and maintain all necessary signs, barricades, lights, and flaggers necessary to control traffic and provide for safety of the public, all in compliance with the MUTCD with subsequent revisions and additions, and to the satisfaction of the Public Works Division.

7.12.3 Whenever a police officer is necessary for traffic control, the Contractor shall hire and pay a uniformed off-duty police officer with authority in the City to direct traffic. The police department will determine the rate of pay for the officers.

7.12.4 The Contractor shall make its Traffic Control plans in concurrence with the Traffic Control requirements specifically stated in the Special Conditions.

## 7.13 Sanitary Regulations

7.13.1 The Contractor is responsible for providing proper health and sanitation facilities for its employees, in compliance with any rules and regulations of the State Board of Health or any other bodies having jurisdiction.

7.13.2 The Contractor shall always provide an abundant supply of safe drinking water for its employees and shall give orders against the drinking of any water known to be unsafe in the vicinity of the Project.

7.13.3 At convenient places, the Contractor shall provide fly-proof outside toilets which are to be maintained in a sanitary condition. Toilets shall not be permitted in any reservoir area and shall not be permitted where they may pollute a water supply.

## 7.14 Pollution Control

7.14.1 The Contractor shall comply with all applicable Federal and State laws, orders, and regulations concerning the control, prevention, and abatement of water pollution and air pollution in all operations pertaining to the Contract whether on right-of-way provided by the City or elsewhere.

7.14.2 The Contractor shall use construction methods that prevent release, entrance or accidental spillage of solid matter, contaminants, debris, and other objectionable pollutants and wastes including, but not restricted to refuse, garbage, cement, concrete, sewage effluent, industrial waste, radioactive substances, oil and other petroleum products, aggregate processing tailings, mineral salts, and thermal pollution. Non-regulated solid wastes shall be disposed of by methods approved under applicable laws and regulations, including, the Resource Conservation and Recovery Act (RCRA), Subtitle D, as administered by Colorado and local Health Departments and the EPA. Contaminated and hazardous materials are regulated by RCRA, Subtitles C and D. The Contractor shall notify the Colorado Department of Health, local Health Departments, and City Fire Departments if suspect materials are encountered.

7.14.3 The Contractor shall utilize methods and devices that are reasonably available to control, prevent, and otherwise minimize atmospheric emissions or discharges of air contaminants including dust in its construction activities and operation of equipment.

7.14.4 **The Contractor shall not emit dust into the atmosphere during any operations,** *including but not limited to*: grading; excavating; manufacturing, handling or storing of aggregates; trenching; or cement or pozzolans. The Contractor shall use the necessary methods and equipment to collect, deposit, and prevent dust from its operations from damaging crops, orchards, fields or dwellings or causing a nuisance to persons. The Contractor is liable for any damage resulting from dust.

7.14.5 The Contractor may not operate equipment and vehicles with excessive emission of exhaust gases due to improper mechanical adjustments, or other inefficient operating conditions, until repairs or adjustments are made.

7.14.6 Burning trash, rubbish, trees, brush or other combustible construction materials is permitted only when the Contractor has a valid "Burning Permit" issued by Boulder County Health Department or other authority having jurisdiction. Burning shall be conducted in strict conformance with the permit.

7.14.7 De-watering for structure foundations or earthwork operations adjacent to or encroaching on lakes, streams or water courses shall be done in a manner which prevents muddy water and eroded materials from entering the lakes, streams or water courses, by construction of intercepting ditches, bypass channels, barriers, settling ponds or by other approved means. Excavated materials may not be deposited or stored in or alongside lakes or water courses where they can be washed away by high water or storm runoff.

7.14.8 The Contractor may not allow waste water from aggregate processing, concrete batching or other construction operations to enter lakes, streams, water courses or other surface waters without turbidity control methods such as settling ponds, gravel-filter entrapment dikes, approved flocculation processes that are not harmful to fish, recirculation systems for washing of aggregates or other approved methods. Any waste waters discharged into surface waters shall conform to applicable discharge standards of the Colorado Department of Health and the Federal Government.

## 7.15 Stormwater Quality

7.15.1 The Contractor shall be responsible for the preservation and protection of storm water

collection systems and other natural and developed drainage ways, which may be affected by Work done under the Contract. Any construction activity that disturbs one or more acres of land and any construction activity that disturbs less than one acre but is part of a larger common plan of development as determined by the City, must obtain a Development Permit from the City and a Stormwater Discharge Permit Associated with Construction Activity from the Colorado Department of Public Health and Environment (CDPHE). Contractor shall use the application form at the end of the General Conditions to apply for a Development Permit from the City. The Colorado Department of Public Health and Environment, Water Quality Control Division, can be reached at 303-692-3500 or http://www.cdphe.state.co.us/wq/PermitsUnit/wqcdpmt.html. Unless otherwise indicated, the Contractor is responsible for obtaining this permit from the Colorado Department of Public Health and the Environment.

7.15.2 The Contractor shall satisfy all environmental quality standards imposed by law and take reasonable steps to minimize the environmental impact of the work. In compliance with applicable City, state and federal law:

1. The Contractor shall not pollute the water of any pond, lake, stream, ditch, or other watercourse, as prohibited by Section 14.26 of the Longmont Municipal Code.

2. The Contractor will implement erosion control practices and stormwater best management practices in accordance with Section 14.26 of the Longmont Municipal Code.

3. The Contractor will comply with all appropriate groundwater discharge permits associated with this project.

7.15.3 All permit requirements must be met throughout the warranty period and until Final Stabilization is reached.

7.15.4 For purposes of this Contract, the Project Manager is authorized to enforce Section 14.26.160 of the Longmont Municipal Code. As a result of enforcement of Section 14.26.160 of the Longmont Municipal Code, any direct costs, including assessed fines, will be charged to the Contractor and appropriate deduction will be made from the Contractor's monthly payments.

7.15.5 This work consists of constructing, installing, maintaining, and removing when required, erosion control measures during the life of the Contract or length of the Stormwater Permit, whichever is open longer, to prevent or minimize erosion, sedimentation, and pollution of any state waters including wetlands as defined in the Colorado Department of Transportation Standard Specifications Section 208 or 107.25, or Urban Drainage and Flood Control District (UDFCD) Volume 3 Urban Storm Drainage Criteria Manual, or City design standards.

7.15.6 The Contractor shall coordinate the construction of temporary erosion control measures with the construction of permanent erosion control measures to assure economical, effective and continuous erosion control throughout the construction and warranty period.

7.15.7 The materials for erosion control measures shall conform to Section 208 of the Colorado Department of Transportation Standard Specifications or Urban Drainage and Flood Control District (UDFCD) Volume 3 Urban Storm Drainage Criteria Manual.

7.15.8 The Contractor is responsible for complying with the requirements of both the City Development Permit and the Stormwater Discharges Permit Associated with Construction Activity Permit from CDPHE until the permits have been formally inactivated.

7.15.8.1 Contract requirements include:

- Develop a Stormwater Management Plan (SWMP) and submit to the City for review and approval.
- After City approval of the SWMP, submit a permit application to CDPHE at least 10 days prior to the start of construction activities.
- Submit proof of issuance of a City Development Permit and proof of issuance of a Stormwater Discharge Permit Associated with Construction Activity to the Project Manager.

7.15.8.2 During Construction

- Keep a current copy of the SWMP on site at all times.
- Document any plan changes on the approved SWMP.
- Install Best Management Practices (BMPs) according to specifications outlined in the SWMP.
- Perform visual inspection daily.
- Perform written inspections of stormwater and erosion controls every 14 days and following each significant storm event.
- Maintain inspection records and maintenance records on-site with the SWMP at all times.
- Provide SWMP and inspection records to City Inspector upon request.
- Maintain and modify BMPs to reflect current conditions of the job site until Final Stabilization is achieved.
- In accordance with project schedule, implement phasing of grading and temporary vegetation cover to properly manage site runoff during periods of construction inactivity.

7.15.8.3 Post Construction

- Project Manager or Designee will determine when final stabilization is reached. Final Stabilization, as defined by the State of Colorado, is reached when all soil disturbing activities at the site have been completed and a uniform vegetative cover has been established with a density of at least 70 percent or pre-disturbance levels or equivalent, permanent, physical erosion reduction methods have been employed.
- Remove all temporary BMP's.
- Inactivate City development Permit and the Stormwater Discharge Permit Associated with Construction Activity through Inactivation Notice or Notice of Transfer or Reassignment as determined by the Project Manager.

7.15.9 For more specific information about SWMP requirements and City Construction Permit application forms, refer to the City Design Standards and Construction Specifications.

7.15.10 Construction sites that discharge un-permitted stormwater are in violation of the Clean Water Act and local regulations, and may be subject to fines of up to $25,000 a day per violation and subject to additional civil penalties.

7.15.11 When included in the Special Conditions, the Contractor shall assign to the project an employee, or other person approved by the Project Manager to serve in the capacity of the Erosion Control Supervisor (ECS). The ECS shall be a person other than the Contractor's superintendent, unless otherwise approved by the Project Manager. The ECS shall be experienced in all aspects of construction and have satisfactorily completed an ECS training program authorized by the City. *Certified Erosion Control Training* is required for contractors responsible for installing and maintaining the BMPs. Call (303)441-1439 to inquire about the next training opportunity. Proof that this requirement has been met shall be submitted to the Project Manager prior to start of any earth disturbance work.

7.15.12 The ECS's responsibilities shall be as follows:

- Ensure compliance with all water quality permits in effect during the construction work.
- Directly supervise the installation, construction, and maintenance of all erosion control measures specified in the Contract and coordinate the construction of erosion control measures with all other construction operations.
- Direct the implementation of suitable temporary erosion and sediment control features as necessary to correct unforeseen conditions or emergency situations. Direct the dismantling of those features when their purpose has been fulfilled unless the Project Manager directs that the features be left in place.
- Inspect all erosion control features implemented for the project. The written inspections shall take place at least once every 14 days and after each storm event that causes surface runoff and be available for review upon request. The appropriate form for this report will be supplied by the Project Manager. The inspections shall be made during the progress of the work, during work suspensions, and until final stabilization acceptance of the work. During project suspensions, inspections shall take place at least once every 14 days, or as directed.
- Attend all project scheduling meetings as required by Project Manager.
- Upon the Project Manager or Inspector's request, implement necessary actions to reduce anticipated or presently existing water quality or erosion problems resulting from construction activities. The criteria by which the Project Manager or Inspector initiates this action may be based on water quality data derived from monitoring operations or by any anticipated conditions (e.g., predicted storms) which the Project Manager or Inspector believes could lead to unsuitable water quality situations.

7.15.13 All erosion control shall be performed in accordance with Sections 208 of the Colorado Department of Transportation's Standard Specifications or Construction Best Management Practices of UDFCD Volume 3 Urban Storm Drainage Criteria Manual.

7.15.14 Unless listed in the Bid Document, all erosion control features, including the Erosion Control Supervisor will not be measured, but will be paid for on a lump sum basis. The lump sum price bid will be full compensation for all work required to complete the item.

7.15.15 Work to furnish, install, maintain, remove and dispose of erosion and sediment control features specified in the Bid document will be paid for at the contract unit price.

Payment will be made under:

| PayItem | UnitPrice |
|---|---|
| Erosion Control | Lump Sum |
| Erosion Control Supervisor | Lump Sum |

## 7.16 **Cleaning Up and Restoration**

7.16.1 The Contractor shall clean up all refuse or scrap materials so the site presents a neat, orderly, and workmanlike appearance at all times.

7.16.2 Upon completion of the Project, and before Final Inspection, the Contractor shall remove from the construction site and any occupied adjoining property all plants, buildings, refuse, unused materials, forming lumber, sanitary facilities, and any other materials and equipment that belong to the Contractor or its Subcontractors.

7.16.3 The City may clean up and restore the construction site satisfactorily when the Contractor fails to do so. Any costs the City incurs will be deducted from the Final Payment due the Contractor.

**Article 8--OTHER WORK**

8.1 The City reserves the right to award other Contracts in connection with the Project. The Contractor shall cooperate with and afford other contractors reasonable opportunity for the introduction and storage of their materials and the execution of their Work, and shall coordinate its Work with theirs.

**Article 9--CITY'S RESPONSIBILITIES**

9.1 The City will furnish the data required by the Contract and will make payments to the Contractor as provided by these General Conditions.

**Article 10--PROJECT MANAGER'S RESPONSIBILITIES**

10.1 The Project Manager [Project Manager is a defined term meaning the City's authorized representative] shall maintain Owner's authority over the Contractor relating to field direction and project administration, but does not assume liability for the Contractor's work, nor control scheduling whenever such performance is located in or upon the City's property. The Project Manager will furnish or coordinate all explanations from consultants, field directions, horizontal and vertical control and inspections necessary to assure compliance with the Project documents, except as otherwise stated in the Project documents.

10.2 **Lines and Grades**

10.2.1 The Contractor shall survey and stake as specified in the Special Conditions.

10.2.2 If the Special Conditions indicate, the Project Manager is responsible for appointment and payment of a surveyor for construction staking. The Contractor shall give assistance, as required by the Surveyor, to aid in the staking, including clearing, improving access, exploratory excavations, and suspending operations to permit the surveyor to perform its work.

10.2.3 If the Project Manager appoints a Surveyor, the Contractor shall give notice to the Surveyor at least five working days before initial lines and grades are needed. Thereafter, the Contractor shall give the Surveyor notice at least three working days before additional line and grade stakes are needed. The Project Manager is not responsible for providing lines and grades until the Contractor meets the notice requirements of this Article.

10.2.4 If the Project Manager appoints a surveyor, the Contractor shall preserve all stakes, benchmarks, and any other survey points. If the Contractor damages them, the Contractor shall pay for their replacement. Contractor shall preserve, reset or reestablish all benchmarks, monuments and other established control points as the Project warrants.

10.3 **Inspection**

10.3.1 The Project Manager shall appoint Inspectors to inspect the Project. Inspection may extend to all or any part of the Project. The Inspectors are not authorized to alter the provisions of the Drawings or Specifications, or to delay the fulfillment of the Contract by failure to inspect materials and Work with reasonable promptness.

10.3.2 An Inspector has authority to reject defective materials and to suspend any Work that is being done improperly subject to the final decision of the Project Manager.

10.3.3 The Contractor shall give the Project Manager due and timely notice of readiness when the Project is to be inspected, tested or approved by someone other than the Inspector. The Contractor shall give the Project Manager required certificates of inspection, testing or approval. Inspection, tests or approvals by the Project Manager or others does not relieve the Contractor from its obligations to perform the Work according to the requirements of the Contract.

10.3.4 If the Project Manager considers it necessary or advisable that previously completed or covered Work be inspected or tested, the Contractor shall uncover, expose or otherwise make the Work available to the Project Manager for inspection and testing. The Contractor shall furnish all tools, labor, material, and equipment necessary to make the Work available. If the Project Manager finds the Work defective, the Contractor shall pay for the cost of satisfactory reconstruction and making the Work available. However, if the Work is not found defective, the Contractor will be allowed an increase in the Contract Price and/or an extension of the Contract Time for costs and time directly attributable to making the Work available and for reconstruction.

10.3.5 If the Contractor's operations require inspecting, testing or surveying to be done outside normal working hours or on City holidays, it shall be at the Contractor's expense.

10.4 **Stop Work Order**

10.4.1 The Project Manager has the authority to suspend Work on the Project either in whole or in part, for as long as the Project Manager deems necessary due to:

- Unsuitable weather;
- Faulty workmanship;
- Improper superintendence;
- Contractor's failure to carry out orders or to perform any provision of the Contract;
- Conditions which may be considered unfavorable for the prosecution of Work on the Project; or
- Work being carried on in an unsafe manner.

10.4.2 If it is necessary to stop work for an indefinite period, the Contractor shall, if directed by the Project Manager, store all materials in such a manner that they will not become an obstruction or become damaged in any way. The Contractor shall take every precaution to prevent damage to or deterioration of the Work, providing suitable drainage and erecting temporary structures where necessary.

10.4.3 The Project Manager will put the Stop Work order in writing and the Contractor may not proceed with Work on the suspended portion of the Project until notified in writing by the Project Manager.

10.5 **Disputes**

10.5.1 If the Contractor considers any Work directed by the City to be outside the Contract requirements, or if it considers any ruling of the Project Manager to be unfair, it shall immediately ask for a written instruction or decision and shall perform the Work in conformance with the Project Manager's ruling. If the Contractor considers such instructions unsatisfactory, it shall file a written protest with the Project Manager within ten days after their receipt.

10.5.2 All claims, disputes and other matters in question arising out of or relating to the Contract shall be submitted to the Project Manager before the Contractor can begin litigation.

## Article 11--CHANGES

### 11.1 General

11.1.1 The City may make alterations to the Project without the consent of the Surety at any time during the Work. The Contractor shall perform the Work as changed, as if originally specified. The alterations do not invalidate the Contract in any way.

11.1.2 The Project Manager may, at any time, without notice to the Surety, by written notice to the Contractor, make any change in the Work to be performed within the general scope of the Contract, including but not limited to changes:

- In the Specifications (including Drawings and designs);
- In the method or manner of the performance of the Work;
- In facilities, equipment, materials, services or site furnished by the City; or
- Directing acceleration in the performance of the Work.

11.1.3 Any written order (which terms as used in this Article shall include direction, instruction, interpretation or determination) from the Project Manager, which may warrant a time extension or increased or decreased costs, will be treated as a Change Order under this Article provided that the Contractor gives the Project Manager written notice within seven (7) calendar days of that condition, stating the date, circumstances, and source of the order and that the Contractor regards the order as a Change Order. However, the City will not authorize a change in the Contract Price for work done before approving a Change Order authorizing the additional work. If the City and the Contractor do not agree to the terms of a Change Order, including the amount of additional compensation, the Contractor shall proceed with the work under the terms of the Contract and shall maintain accurate records of the costs as described in the General Conditions, Article 11.

11.1.4 The Contractor may not treat any order, statement or conduct of the Project Manager as a change under this Article nor become entitled to an equitable adjustment in the Contract Price or Performance Time, except as provided in this Article.

11.1.5 If any change under this clause causes an increase or decrease in the Contractor's cost or the time required for the performance of any part of the Work under the Contract, whether or not changed by any order, an equitable adjustment will be made and the Contract modified in writing accordingly.

**In no case will the price adjustment change the original Contract Price to an amount not appropriated and approved by city council per Section 4.12.080.B, Longmont Municipal Code (LMC).**

11.1.6 Claims for changes in the Contract Price or Contract Time of Performance will not be considered after the Final Payment has been made.

### 11.2 Compliance with §24-91-103.6

11.2.1 Notwithstanding any other language in this contract, the issuance of any Change Order or other form of order or directive by the City requiring additional compensable work to be performed which will cause the Contract Price to exceed the amount appropriated for the Work is prohibited unless the Contractor is given written assurance by the City that lawful appropriations to cover the costs of the additional work have been made or unless the Contract contains a remedy granting provision.

11.3 **Field Orders**

11.3.1 The Project Manager may make changes in the details of the Project at any time, by issuing a Field Order. The Contractor shall proceed with the performance of any changes in the Project ordered by the Project Manager. If the Contractor believes that such Field Order entitles it to a change in Contract Price or Time, or both, it shall give the Project Manager written notice within ten days after the receipt of the Field Order. Thereafter, the Contractor shall document the basis for the change in Contract Price or Time within thirty days.

11.4 **Change Orders**

11.4.1 Changes in the Contract Price are authorized only by Change Orders. Changes in contract time may be made by a Change Order or by other appropriate written authorization. Any requests for extension of time due to conditions outside of the Contractor's control shall be made in writing within seven (7) calendar days of that condition.

11.4.2 Any difference in cost from Change Orders shall be added to or deducted from the amount of the Contract, as the case may be. Adjustments in the amounts to be paid to the Contractor on account of changed Work will be determined by one of the following methods in the order listed:

- Unit Prices submitted in the Bid Schedule;
- Negotiated Unit Prices; and
- Negotiated lump sum.

11.5 **Extras and Force Account Work**

11.5.1 The Contractor shall perform any Work and furnish materials and equipment necessary or desirable for proper completion of the Contract if the Project Manager believes it necessary to order Work or materials or equipment which, in the Project Manager's opinion, are not susceptible to classification under the Unit Price items named in the Bid Schedule, and are not included in any lump sum bid item. The Project Manager will order such labor, material and equipment in writing before the extra Work is started. The labor, material and equipment will be classed as extra Work. The City will not pay for extra Work unless the City orders in extra work in writing. All claims for extra Work shall be submitted to the Project Manager, supplemented by any data the Project Manager requires.

11.5.2 Extra Work and Work involving a combination of increases and decreases in the Work will ordinarily be paid for at a lump sum or Unit Price agreed upon in writing by the Project Manager and Contractor before the extra Work Order is issued. In the negotiation of lump sum or Unit Prices, the agreed estimated cost of the Work plus an allowance for overhead and profit, not to exceed the allowances stated in Section 11.5.3, shall be used.

11.5.3 The allowance for overhead and profit will include full compensation for superintendence, bonds and insurance premiums, taxes (other than sales or use taxes included in the cost of materials), office expense, and all other items of expense or cost not included in the cost of labor, materials, or equipment provided under Sections 11.5.4, 11.5.5 and 11.5.6. The allowance for overhead and profit will be according to the following schedule:

**ACTUAL NECESSARY COST ALLOWANCE**:

| | |
|---|---|
| Labor | 20 percent |
| Materials | 15 percent |
| Equipment | 10 percent |

The Actual Necessary Cost for labor, materials, or equipment will be computed according to Sections 11.5.4, 11.5.5 and 11.5.6.

Superintendence, bond and insurance premiums, taxes (other than sales or use taxes inclusive in the cost of materials), and other general expense will not be included in the computation of actual necessary cost. When all or any part of the extra Work is performed by a Subcontractor or specialty firm, the prime Contractor may add five percent of the Subcontractor's total cost for the extra Work. The Contractor shall give the Project Manager daily report sheets covering the direct cost of labor and materials and charges for equipment. The daily report sheets shall provide names or identifications and classifications of workers and hours worked, as well as size, type and identification number of equipment and hours operated. Material charges shall be substantiated by valid copies of vendors' invoices. The Project Manager will make any necessary adjustments and compile the costs of cost-plus Work. When these reports are agreed upon and signed by both parties, they become the basis of payment for the Work performed.

11.5.4 Labor: The cost of labor used in performing the Work by the Contractor, a Subcontractor, or other forces will be the sum of the actual wages paid plus any employer payments to, or on behalf of, workers for fringe benefits including health and welfare, pension, vacation, and similar purposes; all payments imposed by State and Federal laws including, but not limited to, compensation insurance, and social security payments; and the amount paid for subsistence and travel required in accordance with the regular practice of the employer.

At the beginning of the contract or as later requested by the Project Manager, the Contractor shall furnish the Project Manager proof of labor compensation rates being paid or already paid.

11.5.5 Materials: The cost of materials used in performing the Work, including transportation charges for delivery (exclusive of machinery rentals), will be the cost to the purchaser, whether Contractor, Subcontractor or other forces, from the Supplier thereof, inclusive of sales or use taxes, except if, in the opinion of the Project Manager, the cost of materials is excessive, or the Contractor does not furnish satisfactory evidence of the cost of such material. If the Project Manager finds the cost excessive or the Contractor has not furnished evidence of the cost, then the cost will be deemed to be the lowest current wholesale price for the quantity concerned delivered to the job-site less cash or trade discounts.

The City reserves the right to furnish materials for the Work and the Contractor may not claim costs and profit on materials furnished by the City.

The City reserves the right to purchase from the Contractor any materials previously purchased for a project and not used. Payment for the materials will be based on the actual material cost as shown on the Supplier's invoice, any transportation charges incurred, plus a fifteen percent handling fee.

11.5.6 Equipment: The Contractor will be paid according to the rental rates agreed upon in writing before extra or force account Work is begun, for any machinery or special equipment (other than small tools) authorized by the Project Manager. The Contractor may furnish cost data to assist the Project Manager in the establishment of the rental rate.

The rental rates paid, as provided above, shall include the cost of fuel, oil, lubrication supplies, small tools, necessary attachments, repairs and maintenance of all kinds, depreciation, storage, insurance, and all incidentals. Operator wages will be paid separately, as provided in Section 11.5.4.

Individual pieces of equipment or tools having a replacement value of $100.00 or less, whether or not consumed by use, are considered small tools and no payment will be made for them.

Rental time will not be allowed while equipment is inoperative due to breakdowns or storage on-site.

11.5.7 Equipment on the Work: The rental time to be paid for equipment on the Work is the time the equipment is in productive operation on the extra Work being performed.

11.5.8 Eliminating Items: The Project Manager shall notify the Contractor in writing to eliminate any items contained in the proposal unnecessary for the proper completion of the Work. Such action will not invalidate the contract. The Contractor, by Change Order, will be reimbursed for actual work done and all cost incurred, including mobilization of materials and equipment before the elimination of such items.

## Article 12--CONTRACT TIME

### 12.1 General

12.1.1 Time is of the essence in the performance of all Work contemplated in the Contract. Therefore, the Work shall be commenced no later than ten days from and including the date of Notice to Proceed and shall be fully completed in a satisfactory and acceptable manner within the time stated in the Contract.

12.1.2 The capacity of the Contractor's construction plant and force shall be sufficient as to insure completion of the Project within the allotted time. The Contractor shall use multiple crews if necessary to complete the Project within the allotted time.

### 12.2 Delays

12.2.1 Delay claims fall into three categories: non-excusable, excusable, or compensable. Any payment for delays or the granting of time extensions require a properly executed Change Order per Article 11.

12.2.1.1 N**on-excusable delay** is one caused by factors within the Contractor's reasonable control. The delay is the Contractor's fault; no additional time or additional compensation is allowed. Typical types of non-excusable delays are:

- Late submittal of Shop Drawings;
- Late procurement of materials or equipment;
- Insufficient personnel;
- Unqualified personnel;
- Inadequate coordination of Subcontractors or other contractors;
- Subcontractor delays;
- Late response to City and Project Manager inquiries; or
- Construction not conforming to contract requirements making repeated re- working necessary.

12.2.1.2 **Excusable delay** is caused by factors beyond the Contractor's reasonable control, but is not the result of the City's actions or failure to act. An excusable delay entitles the Contractor to an extension of time but no additional compensation for the cost of the delay.

12.2.1.3 **Compensable delay** is one where the City has failed to meet an obligation stated

or implied in the construction contract. If the Project Manager considers a delay as compensable, the City will grant a time extension and reimburse the Contractor for the increased cost caused by the delay. Typical types of City-caused delays are:

- Late approval of Shop Drawings and samples;
- Delays in answers to field inquiries by the Contractor;
- Interference with the Contractor during construction;
- City-caused schedule changes;
- Design changes; or
- Interference by other contractor's or the City's forces.

### 12.3 Failure to Complete Work on Time--Liquidated Damages

12.3.1 The City may permit the Contractor to proceed if the Contractor fails to substantially complete the Work on or before the original date set forth for Substantial Completion in the Contract, or on or before the corrected date of Substantial Completion. In such case, the City will deduct the sum specified in the Contract for each day that the Work remains uncompleted. This sum shall not be a penalty but is liquidated damages.

12.3.2 The parties agree that, under all of the circumstances, the daily basis and the amount set forth as liquidated damages is reasonable and equitable. The City expends additional personnel effort in administrating the Contract or portions of it that are not completed on time, and such efforts and the costs thereof are impossible to accurately compute. In addition, some, if not all, citizens of Longmont incur personal inconvenience and lose confidence in their government as a result of public projects or parts of them not being completed on time, and the impact and damages, certainly serious in monetary as well as other terms, are impossible to measure.

12.3.3 The Contractor shall perform with due diligence, regardless of meeting the various scheduled deadlines. If, in the opinion of the City's Project Manager, or other authorized agent of the City, the Contractor is not prosecuting the Work under the Contract, written notice will be given and the Contractor shall have seven days to resume the Work with due diligence. Failing a cure, liquidated damages will be charged until there is resumption of prosecution with due diligence.

12.3.4 Permitting the Contractor to continue and finish the Work, or any part of it, after the time fixed for its completion, or after the date to which the time of completion may have been extended, shall not operate as a waiver on the part of the City of liquidated damages or any of its rights under the Contract.

## Article 13--WARRANTY AND GUARANTEE; SAMPLES AND TESTING; DEFECTIVE WORK AND MATERIALS

### 13.1 Warranty and Guarantees

13.1.1 The Contractor and its Surety are jointly and severally responsible for the condition of all completed Work, maintenance (unless the City is required by the Special Conditions to assume responsibility for maintenance) and satisfactory operation of Work performed under the Contract for a period of one year following the Notice of Construction Acceptance or for one year after warranty work is fully satisfied. A notice of warranty work that requires repair or replacement under the warranty will be submitted to the Contractor on a Notice of Warranty Work. The Contractor and Surety are jointly and severally responsible for the satisfactory repair or replacement of any Work, materials or equipment which are found defective during this period, provided any failure results directly or indirectly from faulty workmanship or negligence by the Contractor, from faulty manufacturing or from faulty erection or improper handling of materials or equipment

furnished or installed by the Contractor. Neither the Contractor nor Surety is liable for any failure resulting from the City's neglect or improper operation of facilities or the acts of third parties.

13.2 **Samples and Testing**

13.2.1 All materials and equipment used in the Project will be subject to sampling and testing according to generally accepted standards and as required in the Contract Documents. In the absence of direct references, the sampling and testing of materials will be done according to current Specifications of the American Society for Testing and Materials or the American Water Works Association. The Contractor shall cooperate with the Project Manager in collecting and forwarding required samples.

13.2.2 The Contractor shall not incorporate any materials into the Project or cover any part of the Work until it has been inspected and approved according to the Contract Documents.

13.2.3 The Contractor shall furnish all samples without charge. The Contractor will cooperate with the Project Manager in collecting, handling, storing, and forwarding required samples including the furnishing of manpower and equipment when necessary.

13.2.4 The City will pay the cost of the initial test except when the Contract states otherwise. The City will charge the Contractor for repeated tests due to failure of the initial test.

13.3 **Access to Work**

13.3.1 The Project Manager and the Manager's representatives shall have access to the Project at any time for purposes of inspection, sampling, and testing. Access shall extend to authorized representatives of participating federal or state agencies and to other public authorities having jurisdiction established by law. The Contractor shall provide proper facilities for access to the Project.

13.3.2 Access to the Project shall mean wherever and whenever it is in manufacture, preparation or progress. It shall include access to payrolls, records of personnel, invoices of materials, terms and conditions of sale of materials and equipment to be incorporated in the Project, files, records, books, correspondence, instructions, Drawings, receipts, subcontracts, purchase orders, vouchers, memoranda and any other relevant data and records relating to the Contract.

13.3.3 The City may, at reasonable times, inspect the part of the plant, place of business or worksite of the Contractor or Subcontractor at any tier which is pertinent to the performance of the Contract.

13.4 **Defective Work and Materials**

13.4.1 Material and workmanship not conforming to the requirements of the Contract are deemed defective. Defective Work or material shall be removed immediately from the Project site and replaced with acceptable Work and material at the Contractor's expense.

13.4.2 If the Contractor fails to replace rejected materials or Work within ten days after receipt of written notice, the City may replace or correct them and charge the cost to the Contractor and may terminate the right of the Contractor to proceed. Failure to detect previously installed defective materials or workmanship shall not impair the City's right to receive a completed project which is free of defects and meets all of the requirements of the Contract Documents.

## Article 14--PAYMENTS TO CONTRACTOR AND COMPLETION

### 14.1 General

14.1.1 Unless expressly provided otherwise, the prices shown in the Bid Schedule include the cost of all labor, materials, equipment, tools, forms, services, utilities, royalties, fees, and any other thing or expense necessary to complete the Project. Items not shown on the Plans, Specifications or Special Provisions but which are necessary to construct the Project will be considered a part of the Project whether specified or not and no separate payment will be made for these items.

14.1.2 Unless expressly provided otherwise in the Contract, the amount to be paid for the Work includes all labor, materials, forms, tools, scaffolding, plants, equipment, service, utilities, royalties, fees, and everything, whether temporary or permanent, necessary to complete the Project.

### 14.2 Determination of Amounts and Quantities

14.2.1 The Project Manager shall verify determinations of amounts and quantities of Work performed. The Project Manager shall have access to the records as stated in Article 13.3. The method of measurement of the Contract Bid Items will be as specified in the Special Conditions.

### 14.3 Variations in Estimated Quantities

14.3.1 Where the quantity of a pay item in the Contract is an estimated quantity and where the actual quantity of such pay item varies more than twenty-five percent below the estimated quantity stated in the Contract, the Contractor shall make an equitable adjustment in the Contract Price, upon demand of the City. The Contract Price adjustment will be based upon any decrease in costs due solely to the variation below seventy-five percent of the estimated quantity.

Where the quantity of a pay item in the Contract is an estimated quantity and the actual quantity of such pay item is more than twenty-five percent above the estimated quantity in the Contract, the City may elect to terminate the Contract or issue a Change Order to adjust the Contract Price.

**In no case will the price adjustment change the original Contract Price to an amount not appropriated and approved by City Council per Section 4.12.080.B, LMC.**

### 14.4 Monthly Estimates--Partial Payments

14.4.1 The Contractor shall prepare monthly partial estimates (monthly estimates) for all Work completed up to that time. The authorized City representative(s) shall approve the monthly estimates before progress payments will be made. The format of the monthly estimates will be related to the format of the Bid Proposal.

14.4.2 In making such progress payments, subject to the exceptions in this Article, the City will retain five percent of the calculated value of completed Work for contracts in excess of $150,000 and where the contractor is satisfactorily performing the contract. The withheld percentage of the Contract Price of any contracted Work will be retained until the contract is completed satisfactorily and finally accepted by the City.

14.4.3 On Contract amounts of less than $150,000, ten percent may be withheld until Final Payment.

14.4.4 If the City finds that satisfactory progress is being made in any phase of the Contract, it may, upon written request by the Contractor, authorize payment from the withheld percentage to the Contractor or subcontractors who have completed their work in a manner finally acceptable to the City. Before the payment is made, the City shall determine that satisfactory and substantial reasons exist for the payment and shall require written approval from any surety furnishing bonds for the Work.

14.4.5 Monthly estimates may include the value of acceptable materials required in the construction which have been delivered on the site of the Work or to adjacent railway siding and for which acceptable provisions have been made for preservation and storage, providing the Contractor submits with its monthly estimate, paid invoices in duplicate for the material for which payment is being requested. Material paid for by the City becomes the property of the City and, in the event of the default on the part of the Contractor, the City may use or cause to be used such materials in construction of the Work provided for in the Contract.

14.4.6 The City may withhold, in addition to retained percentages from Contractor payments, such an amount or amounts as may be necessary to cover:

14.4.6.1 Claims for labor or materials furnished the Contractor or Subcontractor(s) or reasonable evidence indicating probable filing of such claims;

14.4.6.2 Failure of the Contractor to make proper payment to Subcontractors or for material or labor furnished by others;

14.4.6.3 A reasonable doubt that the Contract can be completed for the balance then unpaid;

- Evidence of damage to another Contractor or private property;
- Uncorrected defective Work or guarantees that have not been met;
- Failure of the Contractor to submit cost breakdowns, schedules, reports and other information required under the Contract;
- Persistent failure to carry out the Work according to the Contract; or
- Reasonable evidence that the Work will not be completed within the Contract Time, and that the unpaid balance would not be adequate to cover actual or liquidated damages for the anticipated delay.

14.4.7 The City may disburse and has the right to act as agent for the Contractor in disbursing funds, withheld pursuant to this paragraph, to the party or parties who are entitled to payment therefrom, but the City assumes no obligation to make such disbursement. The City will render to the Contractor a proper accounting of all funds disbursed under this paragraph.

## 14.5 **Escrow Contract in Lieu of Retainage**

14.5.1 When sums are withheld to assure satisfactory performance of any contract exceeding fifty thousand dollars, the Contractor may withdraw the whole or any portion of the withheld sums if the Contractor deposits acceptable securities with the Director of Finance to negotiate the acceptable securities and to receive the payments due the City pursuant to law or the terms of the Contract. To the extent there are excess funds resulting from negotiation, the balance shall be returned to the Contractor. Acceptable securities which are deposited shall have a market value at least equal in value to the amount withdrawn at all times. If at any time the City determines that the market value of the acceptable securities deposited has fallen below the amount withdrawn, the Director of Finance shall give notice to the Contractor, who shall deposit additional acceptable securities in an amount sufficient to re-establish a total deposit of securities equal in value to the amount withdrawn.

14.5.2 The City may enter into an escrow contract or agreement with any national bank, state bank, trust company or savings and loan association located in this state and designated by the Contractor, after notice to the Surety, to provide an escrow agent for the custodial care and servicing of any obligations deposited with it pursuant to §24-91-106, C.R.S., as amended. Such services shall include the safekeeping of the obligations and the rendering of all services required to effectuate the purpose of §24-91-106 and §38-26-107, C.R.S., as amended.

14.5.3 The City or any national bank, state bank, trust company or savings and loan association located in the state and designated by the Contractor to serve as custodian for the obligations pursuant to §24-91-106, C.R.S., as amended, shall collect all interest and income when due on the obligations deposited and shall pay them, when and as collected, to the Contractor who deposited the obligations. If the deposit is in the form of coupon Bonds the escrow agent shall deliver each coupon, as it matures, to the Contractor. The Contractor may not charge any expense incurred for this service to the City.

14.5.4 Any amount deducted by the City, pursuant to law or the terms of a Contract, from the retained payments otherwise due to the Contractor, will be deducted first from that portion of the retained payments for which no obligation has been substituted and then from the proceeds of any deposited obligation, in which case, the Contractor is entitled to receive the interest, coupons or income only from those obligations which remain on deposit after such amount has been deducted.

14.5.5 Provided that the Subcontractor has performed under its Contract with the Contractor, the Contractor shall disburse to each Subcontractor all retained payments and interest disbursed to the Contractor by the City, in proportion to the respective amounts of retained payments, if any, which the Contractor has withheld from its Subcontractors.

14.5.6 The provisions of this Article do not apply if a part of the Contract Price is to be paid with funds from the federal government or from some other source and if the federal government or such other source has inconsistent requirements concerning retention or payment of funds applicable to the Contract.

14.5.7 If it becomes necessary for the City to take over the completion of any Contract, all of the amount owed the Contractor, including the withheld percentage, shall first be applied toward the cost of completion of the Contract and any liquidated damages. Any balance remaining in the retained percentage shall be payable to the Contractor or the Contractor's creditors. Such retained percentage, as may be due any Contractor, shall be due and payable at the expiration of thirty days from the date of the City Project Final Acceptance.

## 14.6 City's Right to Accept Portion of the Project

14.6.1 The City reserves the right to accept and make use of any completed section of the Project without invalidating the Contract or obligating the City to accept the remainder of the Project.

## 14.7 Substantial Completion

14.7.1 When the Contractor considers the entire work ready for its intended use and has obtained either a “Certificate of Occupancy” or a “Copy of the Final Inspection Approval Memo” from Building Inspections for required structures, the Contractor shall notify the Project Manager in writing that the entire Work is substantially complete (except for items specifically listed by Contractor as incomplete) and request that the Project Manager issue a Notice of Substantial Completion. Within a reasonable time, the Contractor, Project Manager and any other appropriate City representatives shall make an inspection of the

Work to determine the status of completion. If the Project Manager does not consider the Work substantially complete or the Contractor has not submitted either a “Certificate of Occupancy” or a “Copy of the Final Inspection Approval Memo” from Building Inspections to the Project Manager, the Project Manager will notify the Contractor in writing giving the reasons for denial of the Notice of Substantial Completion. If the Project Manager considers the Work substantially complete, the Project Manager will prepare and deliver to the contractor a Notice of Substantial Completion which shall fix the date of Substantial Completion. The Project Manager shall attach to the certificate a tentative list ("punch list") of items to be completed or corrected before Final Payment. Warranties required by the Contract shall commence on the date set in the Notice of Construction Acceptance for the Project, or the date set in the Notice of Construction Acceptance for a designated portion of the Project, unless otherwise provided in the notice of Substantial Completion.

14.8 **Construction Acceptance**

14.8.1 When the Work specified in the Contract is completed and the final cleanup has been performed, the Contractor shall notify the Project Manager that all Work under the Contract has been completed and the Project Manager shall, within fourteen calendar days of receipt of such notice, make the final inspection. If the Project Manager finds that the Project has been completed according to the requirements set forth in the Contract, the City, upon the recommendation of the Project Manager, shall issue a Notice of Construction Acceptance. Notices of Construction Acceptance issued orally or without proper City authorization are void. City will not make the final payment under the Contract before it issues a Construction Acceptance.

14.9 **Claims Against the Contractor**

14.9.1 Before Final Payment, the Contractor shall sign the Contractor's Certificate and Release form provided by the City.

14.9.2 As provided by Colorado law, persons or businesses, including Subcontractors, who have not been promptly paid by the Contractor and who have provided materials, services and labor of any kind, or labor and material incidental to the completion of the Project, may file claims and the City may withhold from the Contractor an amount sufficient to cover such claims.

14.10 **Final Payment--Pursuant to Section 38-26-107, C.R.S., as Amended**

14.10.1 The City shall make a Final Settlement in accordance with Section 38-26-107, C.R.S., within sixty days after the Notice of Construction Acceptance is issued by the City.

14.10.2 After the Notice of Construction Acceptance is issued by the City, a Notice of Final Settlement shall be advertised at least twice, not less than ten days before the date of Final Settlement, in a newspaper of general circulation in the county where the Work was done. If no claims are filed before the expiration of ten days from the date of the last publication of the Notice of Final Settlement, the Final Payment, including retainages, may be made.

14.10.3 If any Subcontractor or Supplier files a claim before the expiration of ten days from the date of the last publication of the Notice of Final Settlement, for Work done or material furnished that has not been paid for by the Contractor, the City shall withhold from Final Payment to the Contractor sufficient funds to insure the payment of the claims. The funds shall not be withheld longer than ninety days from the date of Final Settlement unless a legal action is started within that time to enforce payment of the claims.

14.10.4 At the end of ninety days, or any time before, if the person filing the claim acknowledges receipt of payment for the claim, or otherwise releases the claim in writing, the City shall pay the Contractor the monies not subject to suit or lis pendens notices.

14.10.5 Monies that are the subject of a suit will be withheld until a judgment is rendered in the suit.

## Article 15--CONTRACT TERMINATION

### 15.1 City's Right to Terminate Contract for Convenience

15.1.1 The City shall, at any time, have the right to terminate the Contract, for convenience, upon giving written notice to the Contractor. The Contractor shall be entitled to the full amount of the approved estimate for the Work satisfactorily completed under the Contract up to the time of such termination, including the retained percentage. The City shall reimburse the Contractor for such expenditures as, in the judgment of the Project Manager, are not otherwise compensated for, together with the cost of moving to and from the Project and a reasonable profit on the Work deleted by reason of the annulment of the Contract, in order that an equitable settlement is made with the Contractor.

### 15.2 City's Right to Terminate Contract for Default

15.2.1 The Project Manager, with the approval of the Purchasing and Contracts Manager and acting on behalf of the City, may serve notice upon the Contractor and its Surety of the intention to terminate the Contract if the performance of the Work set forth under the Contract is unnecessarily or unreasonably delayed by the Contractor, or if any of the provisions of the Contract are being violated by the Contractor or its Subcontractors. The Contract is terminated unless, in the opinion of the Project Manager, the Contractor corrects the violation within five days after the notice is served. In the event of such termination, the Project Manager, acting on behalf of the City, shall immediately serve notice of the termination and the Surety's right to complete the Contract upon the Surety and the Contractor. The Surety shall have the right to take over and perform the Work called for in the Contract. The Surety is then bound by all the provisions of the Contract. If the Surety does not commence performance of the Work within ten days from the date of the notice, the City may take over the Project and, without prejudice to any other remedies, complete the Project and the Contractor and its Surety are liable to the City for any excess costs incurred by the City.

### 15.3 Contractor's Right to Terminate Contract

15.3.1 The Contractor may terminate the Contract if the Work is stopped for a period of three months under any order of any court or other public authority through no act or fault of the Contractor or of anyone employed by it.

The Contractor may suspend Work if City fails to make payments at the times provided in the Contract and the Contractor has given the City written notice seven days before suspending Work. The Contractor may terminate the Contract, at its option, if the City continues to be in default thirty days after the date of the written notice. Failure by the City to make payments at the times provided is a bar to any claim by the City against the Contractor for delay in completion of the Project if the Contractor suspended Work for that reason.

If the Contractor terminates the Contract, it may recover the price of all Work done and materials provided and all damages sustained.

**Article 16--EQUAL OPPORTUNITY**

16.1 **General**: During the performance of the Contract, the Contractor agrees as follows:

16.1.1 The Contractor shall not discriminate against any employee or applicant for employment because of race, color, age, disability, religion, sex, national origin, or as otherwise prohibited by law.

16.1.2 The Contractor shall ensure that all Subcontractors shall not discriminate against any employee or applicant for employment because of race, color, age, disability, religion, sex, national origin, or as otherwise prohibited by law.

**Article 17--AUDIT**

17.1 **Records and Reports**

17.1.1 The Contractor shall keep and preserve full and detailed accounts relating to the Contract for a period of three years from the date of final payment under the Contract in which the Work is completed.

17.1.2 The Subcontractor shall keep and preserve full and detailed accounts relating to the Contract for a period of three years from the date of final payment under the subcontract.

17.2 **Access**

17.2.1 The Contractor shall permit the City and the City's accountants to have access as stated in Article 13.3 and to the records kept per Article 17.2 for the purpose of making such financial audits, or verifications as the City deems necessary or appropriate concerning the Contractor's performance under the Contract.

**Article 18--MISCELLANEOUS**

18.1 **Reservation of Right to Bar Persons from the Work and Site**: The City reserves the right to bar any person, including employees of the Contractor and Subcontractors, from the City's Work site. This shall not be treated as a request for the employee's termination but a request that the employee not be assigned to work on the City Work site. No increase in contract time or price is authorized.

18.2 **Provisions Construed as to Fair Meaning**: The provisions of the Contract shall be construed as to their fair meaning, and not for or against any party based upon any attributes to such party of the source of the language in question.

18.3 **Headings for Convenience**: All headings, captions and titles are for convenience and reference only and of no meaning in the interpretation or effect of the Contract.

18.4 **No Implied Representations**: No representations, agreements, covenants, warranties, or certifications, express or implied, exist as between the parties, except as specifically set forth in the Contract.

18.5 **Financial Obligations of City**: All financial obligations of the City under the Contract are contingent upon appropriation, budgeting, and availability of specific funds to discharge such obligations. Nothing in the Contract shall be deemed a pledge of the City's credit, or a payment guarantee by the City to the Contractor.

18.6 **Assignment/transference**: The Contractor may not assign or transfer any interest in the Contract, including any money due or to become due, without the prior written consent of the City.

18.7 **Amendments:** The parties shall only amend the Contract in writing with the proper official signatures and, if required elsewhere in this Contract, on the proper forms.

18.8 **Waiver:** No waiver of a breach or default under the Contract is a waiver of any other or subsequent breach or default.

18.9 **Governing Law:** The Contract is governed and to be construed according to the laws of the State of Colorado. Venue and jurisdiction for any court action filed regarding this agreement shall be in either Boulder County Colorado or the United States District Court for Colorado.

18.10 **Binding Contract:** The Contract is binding upon the parties hereto and their respective heirs, executors, administrators, successors and assigns.

[To complete this form, press f11 to move from field to field and follow any prompts. If no prompt appears (like date or section number fields), press f11 to skip to next field. Now press delete to delete this prompt, and press f11 to proceed.]

**CITY OF LONGMONT, COLORADO**

# CONSTRUCTION CONTRACT

**BID #**[Type bid #, then press f11 to proceed]

THIS CONTRACT is made at the City of Longmont, Colorado, by and between the **City of Longmont, Colorado** (City), a municipal corporation, and [Type name of contractor, then press f11 to proceed] (Contractor), a [Type type of corporation, then press f11 to proceed] corporation, whose address is [Type address, then press f11 to proceed].

In consideration of these mutual covenants and conditions, the City and Contractor agree as follows:

**SCOPE OF WORK.** The Contractor shall execute the entire Work described in the Contract.

**CONTRACT DOCUMENTS.** The Contract represents the entire and integrated agreement between the parties hereto and supersedes prior negotiations, written or oral representations and agreements. The Contract incorporates the following Contract Documents. In resolving inconsistencies among two or more of the Contract Documents, precedence will be given in the same order as enumerated.

**LIST OF CONTRACT DOCUMENTS.**

The Contract Documents, except for Modifications issued after execution of this Agreement, are:

1. Change Orders;
2. Agreement for Construction Contract;
3. The following addenda, if any:

| Number | Date | Page(s) |
|---|---|---|

4. The following Special Conditions of the Contract:

| Document | Title | Page(s) |
|---|---|---|

5. City of Longmont Construction Contract General Conditions;
6. The following Specifications:

| Document | Title | Page(s) |
|---|---|---|

7. The following Drawings:

| Number | Title | Date |
|---|---|---|

8. Notice to Proceed;
9. Notice of Award;
10. Invitation to Bid;
11. Bid Bond;
12. Proposal;
13. Information and Instructions to Bidders;
14. Performance Bond and Payment Bond;
15. Insurance Certificates; and
16. Work Schedule.

**CONTRACT PRICE.** The City shall pay the Contractor on a per unit price basis for the total quantity of Work performed and the completion of the Project according to the Contract, subject to change orders as approved in writing by the City, under the guidelines in the General Conditions. The City will pay the Contractor, in accordance with the unit prices of the Bid Schedule, a total amount not to exceed [Type amount of contract price, then press f11 to proceed] DOLLARS (Contract Price), to the Contractor, subject to full and satisfactory performance of the terms and conditions of the Contract. The City has appropriated sufficient money for this

SAMPLE

work.

**COMPLETION OF WORK.** The Contractor must begin work covered by the Contract within [Type number of calendar days to begin work, then press f11 to proceed] calendar days, and must complete work within [Type number of calendar days to complete work, then press f11 to proceed]calendar days from and including the date of Notice to Proceed, according to the General Conditions.

**LIQUIDATED DAMAGES.** If the Contractor fails to substantially complete the Work by the date set for substantial completion in the Contract, or if the completion date is extended by a change order, by the date set in the change order, the City may permit the Contractor to proceed, and in such case, may deduct the sum of $[Type dollar amount, then press f11 to proceed] for each calendar day that the Work shall remain uncompleted from monies due or that may become due the Contractor. This sum is not a penalty but is the cost of field and office engineering, inspecting, interest on financing and liquidated damages.

The parties agree that, under all of the circumstances, the daily basis and the amount set for liquidated damages is a reasonable and equitable estimate of all the City's actual damages for delay. The City expends additional personnel effort in administrating the Contract or portions of it that are not completed on time, and such efforts and the costs thereof are impossible to accurately compute. In addition, some, if not all, citizens of Longmont incur personal inconvenience and lose confidence in their government as a result of public projects or parts of them not being completed on time, and the impact and damages, certainly serious in monetary as well as other terms are impossible to measure.

**SERVICE OF NOTICES.** Notices to the City are given if sent by registered or certified mail, postage prepaid, to the following address:

CITY OF LONGMONT
[Type Department or Division, then press f11 to proceed]
[Type street address, then press f11 to proceed] Street
Longmont, CO 80501

**INSURANCE PROVISIONS.** The Contractor must not begin any work until the Contractor obtains, at the Contractor's own expense, all required insurance as specified in the General Conditions. Such insurance must have the approval of the City of Longmont as to limits, form and amount.

**RESPONSIBILITY FOR DAMAGE CLAIMS.** The Contractor shall indemnify, save harmless, and defend the City, its officers and employees, from and in all suits, actions or claims of any character brought because of: any injuries or damage received or sustained by any person, persons or property because of operations for the City under the Contract; the Contractor's failure to comply with the provisions of the Contract; the Contractor's neglect of materials while constructing the Work; because of any act or omission, neglect or misconduct of the Contractor; because of any claims or amounts recovered from any infringements of patent, trademark, or copyright, unless the design, device, materials or process involved are specifically required by Contract; from any claims or amount arising or recovered under the "Workers' Compensation Act," by reason of the Contractor's failure to comply with the act; pollution or environmental liability; or any failure of the Contractor to comply with any other law, ordinance, order or decree. The City may retain so much of the money due the Contractor under the Contract, as the City considers necessary for such purpose, for the City's use. If no money is due, the Contractor's Surety may be held until such suits, actions, claims for injuries or damages have been settled. Money due the Contractor will not be withheld when the Contractor produces satisfactory evidence that the Contractor and the City are adequately protected by public liability and property damage insurance.

The Contractor also agrees to pay the City all expenses incurred to enforce this "Responsibility for Damage Claim" agreement and if the Contractor's insurer fails to provide or pay for the defense of the City of Longmont, its officers and employees, as additional insureds, the Contractor agrees to pay for the cost of that defense.

Nothing in the **INSURANCE PROVISIONS of the General Conditions** shall limit the Contractor's responsibility for payment of claims, liabilities, damages, fines, penalties, and costs resulting from its performance or nonperformance under the Contract.

**STATUS OF CONTRACTOR.** The Contractor is performing all work under the Contract as an independent contractor and not as an agent or employee of the City. No employee or official of the City will supervise the Contractor nor will the Contractor exercise supervision over any employee or official of the City. The Contractor shall not represent that it is an employee or agent of the City in any capacity. **The Contractor and its employees are not entitled to City Workers' Compensation benefits and are obligated to pay federal and state income tax on money earned pursuant to the Contract.** This is not an exclusive contract.

**THIRD PARTY BENEFICIARIES.** None of the terms or conditions in the Contract shall give or allow any claim, benefit, or right of action by any third person not a party to the Contract. Any person except the City or the Contractor receiving services or benefits under the Contract shall be only an incidental beneficiary.

**INTEGRATION.** The Contract is an integration of the entire understanding of the parties with respect to the matters set forth in it.

**DEFINITIONS.** The Definitions in the General Conditions apply to the entire Contract unless modified within a Contract Document.

EXECUTED this _____ day of _____, [Type year, then press f11 to proceed].

**CITY OF LONGMONT**

_____
Procurement Specialist

State of _____)
) ss:
County of _____)

The foregoing instrument was acknowledged before me by [Type name of City Representative, then press f11 to proceed], as [Type title of City Representative, then press f11 to proceed] of the City of Longmont, a Colorado municipal corporation, on behalf of the corporation, this _____ day of _____ _____, 2019.

Witness my hand and official Seal.

My Commission expires _____.

_____
Notary Public

APPROVED AS TO INSURANCE PROVISIONS

_____
Risk Manager

APPROVED AS TO FORM:

_____
Assistant City Attorney

SAMPLE

**CONTRACTOR**

By: _____

Title: _____

State of _____)
) ss:
County of _____)

The foregoing instrument was acknowledged before me by _____,
(Name of party signing)

as _____ of _____,
(Title of party signing) (Name of corporation)

a_____ corporation, on behalf of the corporation, this
(State of incorporation)

_____ day of _____, 2019.

Witness my hand and official Seal.

My Commission expires _____.

_____
Notary Public

SAMPLE

# CITY OF LONGMONT
# NOTICE OF AWARD
## Project Name: [Type Project Name, then press f11 to proceed]

Bid Number: [Type bid #, then press f11 to proceed]

Date of Notice of Award: [Type date then press f11 to proceed]

To: [Type name, then press f11 to proceed]

The City of Longmont Purchasing and Contracts Division has considered Bids for the above Project in response to its Invitation to Bidders. The City accepts your Bid for the Work in the amount of [Enter written dollar amount followed by the numerical dollar amount in (parentheses), then press f11 to proceed].

You must sign the Agreement for a Construction Contract with the City of Longmont and furnish complying insurance evidence and applicable Performance and Labor and Material Payment Bonds within **ten** days from the date of delivery of this NOTICE to you.

If you fail to sign the Agreement for a Construction Contract or furnish the bonds and insurance within **ten** days from the date of delivery of this NOTICE, the City may consider all your rights under the City's acceptance of your Proposal as abandoned. Your Bid Guarantee shall become the property of the City as liquidated damages, not as penalty, for any delay of construction. The City may award or re-advertise the Work, or act otherwise, as its discretion.

CITY OF LONGMONT

_____
Procurement Specialist

**ACCEPTANCE OF NOTICE**
Receipt of the above NOTICE OF AWARD is hereby acknowledged this _____ day of _____ _____, 2017.

**CONTRACTOR**

SIGNED:_____

ITS: _____
Title

*cc: Contract File, Contractor, Project Manager*

**PERFORMANCE BOND**

We, [Type name of contractor, press f11 to proceed], contractor under City of Longmont contract # [Type contractor number, press f11 to proceed] (hereafter "THE CITY CONTRACT") as Principal and [Type name of Surety, press f11 to proceed],as Surety, a corporation organized under the laws of the State of [Type name of state, press f11 to proceed] and authorized to transact business in the State of Colorado, with an office at [Type address, press f11 to proceed], hereby bind ourselves, our heirs, successors, executors, administrators, and assigns, jointly and severally, to the City of Longmont, Colorado, (City) as Obligee, in the amount of [Type dollar amount, press f11 to proceed] DOLLARS, in United States currency, for the performance of THE CITY CONTRACT.

WHEREAS, the Principal (Contractor) entered into THE CITY CONTRACT with the City dated [Type date, press f11 to proceed], 2017, for [Type full name, address and description of project, press f11 to proceed] according to the plans and specifications contained in THE CITY CONTRACT, a copy of which is made a part hereof;

The conditions of this Performance Bond are that, if the Principal (Contractor) fully and faithfully:

a) completes the work strictly according to the terms of the Contract, and;

b) for a period of one year after the issuance of the Notice of Project Construction Acceptance or until all warranty work is completed, repairs or replaces where required (or pays the cost thereof) all work performed under the terms of the Contract;

then this bond is null and void. Otherwise, upon written notification from City, the Surety shall take one of the following actions at the Surety's expense:

1. Arrange for the Principal (Contractor), with consent of the City, to perform and complete THE CITY CONTRACT; or

2. Undertake to perform and complete THE CITY CONTRACT itself, through its agents or through independent contractors. (The Surety is then bound by all of the provisions of THE CITY CONTRACT); or

3. Obtain bids or negotiated proposals from qualified contractors acceptable to the City for a contract for performance and completion of THE CITY CONTRACT, arrange for a contract to be prepared for execution by the City and the contractor selected with the City's concurrence, to be secured with a performance bond and a labor and material bond executed by qualified sureties

equivalent to the bonds issued on THE CITY CONTRACT, and pay to the City the amount of all damages incurred by City due to the default of Principal (Contractor) including correction of defective work (if any), additional legal, design professional and delay costs, and the cost of completion of THE CITY CONTRACT subject to the amount of this bond. In addition to these conditions, this bond includes, by reference, all applicable provisions stated in § 38-26-106, C.R.S, as amended.

If the Surety does not commence performance of the Work or cause commencement of performance of the work within ten days from the date of the written notification from City, the City may take over the CITY CONTRACT and, without prejudice to any other remedies, complete the CITY CONTRACT and the Principal and Surety are liable to the City for all damages incurred by City due to the default of Principal (Contractor) including correction of defective work (if any), additional legal, design professional and delay costs, and the cost of completion of THE CITY CONTRACT subject to the amount of this bond.

THE SURETY, for value received, agrees that no extension of time, change in, addition to, or other modification of the terms of THE CITY CONTRACT or Work to be performed shall in any way affect its obligation on this bond and the Surety hereby waives notice of any such extension of time, change, addition or modifications.

The City shall bring any action against the Surety on this bond no later than two years from the published date of Final Settlement.

Executed this _____ day of _____, 2017.

WITNESS

_____

WITNESS

_____

PRINCIPAL

_____
By its President

SURETY

_____TITLE

BY: _____
Its Attorney-in-fact

**LABOR AND MATERIAL PAYMENT BOND**

We, _____,
(*insert the full name and address or legal title of the Contractor)* as Principal,

and, _____
(*insert the legal title of the Surety)* as Surety, a corporation organized under the laws of the State of _____, and authorized to transact business in the State of Colorado, with a general office at _____
_____,
hereby bind ourselves, our heirs, executors, administrators, successors, and assigns, jointly and severally, to the City of Longmont, Colorado, (City) as Obligee, for payment in the amount of _____ DOLLARS, in United States currency.

WHEREAS, the Contractor entered into a written Contract with the City dated _____, 2017, for _____
_____
_____
(Project) (*insert the full name, address and description of Project)* according to the plans and specifications contained in the Contract, a copy of which is made a part hereof.

The conditions of this Obligation are that the Contractor shall:

a. promptly pay all persons supplying or furnishing the Contractor or its Subcontractor(s) with labor, materials, or rental machinery tools, or equipment used or performed in the prosecution of the Worked provided for in the Contract;

b. indemnify and save harmless the City for any payments the City may be required to make by law in connection with carrying out of the Contract by the Contractor and its Subcontractors.

The Surety shall make all payments lawfully due, in an amount not exceeding the sum specified in the bond together with interest at a rate of eight percent per annum, if the Contractor or subcontractor fails to promptly pay all persons listed in paragraph a or fails to indemnify and save harmless the City as specified in paragraph b.

Subcontractors, materialmen, mechanics, suppliers or rental equipment, and others shall have a right of action for amounts lawfully due them from the Contractor or its Subcontractor(s) directly against the Principal and Surety of this bond. Any person who has furnished labor or material to a subcontractor for the Work of this Contract, but has no express contract with the Contractor signing this bond, shall first give written notice to the contractor within 90 days from the date on which the person performed the last of the labor or supplied the material. The notice shall state the amount claimed and the name of the party to whom material was supplied or for whom the labor was performed. The notice must be served either personally or by certified or registered mail in an envelope addressed to the contractor at any place the contractor maintains an office or conducts business.

Any suit(s) on this bond shall be brought in a court of competent jurisdiction in the county or district in which the Work was performed. Any suit on this bond shall be brought no later than six months from completion of the Work.

In addition to these conditions, this bond includes, by reference, all provisions stated in §38-26-105 and 38-26-106, C.R.S., as amended and §4.I2.320, LMC.

THE SURETY, for value received, agrees that no extension of time, change in, addition to, or other modification of the terms of the Contract or Work to be performed thereunder shall in any way affect its obligation on this bond and the Surety hereby waives notice of any such extension of time, change, addition or modifications.

Executed this _____ day of _____, 2017.

WITNESS_____ PRINCIPAL
By its President_____

WITNESS_____ SURETY
TITLE_____

BY: _____
Its Attorney-in-fact

# CITY OF LONGMONT
# NOTICE TO PROCEED

Bid Number: [Type bid #, then press f11 to proceed] Date of Notice to Proceed: [Type date, then press f11 to proceed]

Bid Name: [Type bid Name, then press f11 to proceed]

To: [Type bid name and address, then press f11 to proceed]

**Please take notice that:**

The Contractor and the City have signed the Contract for the Project and the Contractor has submitted the items requested prior to the beginning of the Work for the Contract.

The City has approved the Contract.

Therefore, as the Contractor for the above-described work, you are hereby authorized and directed to proceed within [Type number of days, then press f11 to proceed] calendar days from and including the date of the Notice to Proceed, as required by the Contract.

**Contract Purchase Order Number: ***

*Reference this purchase order number, project name, and project number on all invoices and pay request forms.
*Submit all pay requests on approved forms.

CITY OF LONGMONT

Project Manager:_____

**ACCEPTANCE OF NOTICE**

Receipt of the above NOTICE TO PROCEED is hereby acknowledged this _____day of

_____, 2017.

**CONTRACTOR**

SIGNED: _____

BY ITS: _____
Title

*cc: Contract File, Contractor, Project Manager*

**CITY OF LONGMONT**
**REQUEST FOR PAYMENT NUMBER _____**

Date: _____ P.O. Number: _____

Bid Name: _____ Bid Number: _____

Project Name (if applicable): _____ Project Number (if applicable): _____

Contractor: _____ Project Manager: _____

Payment Period from _____ to _____

**Final Payment? YES__ NO___**

| | | |
|---|---|---|
| Original Contract Price | | $_____ |
| Net change by Change Orders | + / - | $_____ |
| Contract Price to date | | $_____ |
| Total completed (invoiced) & stored to date | | $_____ |
| Retainage (per T & C 14.4.2) | - | $_____ |
| Total earned less retainage | | $_____ |
| Less previous certificates for payment | | $_____ |
| **CURRENT PAYMENT DUE** | | **$_____** |

**PAY ON ACCOUNT #_____*** *If paying from several account numbers or project numbers, please list all numbers on a separate sheet along with the dollar amount to be paid from each.

PEVIOUS PAYMENT SUMMARY:

| | |
|---|---|
| Payment #1: $ | Payment #4: $ |
| Payment #2: $ | Payment #5: $ |
| Payment #3: $ | Payment #6: $ |

CHANGE ORDER SUMMARY:

| Number | Date Approved | Additions | Deductions |
|---|---|---|---|

Change Order(s) Total +/- $_____ CURRENT COMPLETION DATE:

The undersigned Contractor certifies that the work covered by this Request for Payment has been completed in accordance with the Contract and that the current payment shown here is now due.

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CONTRACTOR

By: _____

Title: _____

Date: _____

*Originals: Contractor; Purchasing and Contracts*
*Copies: Project Manager Files*

**CHANGE ORDER NO.** _____ **Date** _____

**Project** _____ **Project Number** _____

**P.O. Number** _____ **Bid Number** _____

**Contractor** _____

The following changes are made to the Contract:

**Attach support documentation to this Change Order. If paying on multiple accounts and/or project numbers, attach a memo detailing each number and related dollar amount.**

Is this Change Order strictly a quantity adjustment? YES NO

The Original Contract Price was $_____

Net Change by Previous Change Orders $_____

Contract Price Before this Change Order $_____

CURRENT Change Order AMOUNT (note + or - ) $_____

**THE NEW CONTRACT PRICE WILL BE** $_____

Original contract time: _____ days

Net time change by previous Change Order(s): _____ days

Net adjustment due to this Change Order: _____ days

Current contract time including this Change Order: _____ days

**DATE FOR SUBSTANTIAL COMPLETION WILL BE**:_____

The contractor hereby certifies that all work specified in this Change Order shall be performed according to the original contract requirements except as modified by Change Order(s).

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CONTRACTOR

By: _____

Its: _____

Date: _____

*Originals: Contractor; Purchasing and Contracts File*

**NOTICE OF SUBSTANTIAL COMPLETION**

Project Name _____

Project Number _____ Date of Substantial Completion _____

Contractor _____

Check one of the following and attach the requested document to this notice for required structures.

☐ Copy of the signed “Certificate of Occupancy”

☐ Copy of the signed “Copy of the Final Inspection Approval Memo from Building Inspections"

PROJECT OR SPECIFIED PART OF PROJECT WHICH IS SUBSTANTIALLY COMPLETE:

The Work performed under this Contract has been inspected by authorized representatives of the City, Contractor, and the Project (or specified part of the Project, as indicated above) is hereby declared to be substantially completed as of the Date of Substantial Completion.

A tentative list of ITEMS TO BE COMPLETED OR CORRECTED is appended hereto. The ITEMS TO BE COMPLETED OR CORRECTED list may not be exhaustive, and the failure to include an item on it does not alter the responsibility of the Contractor to complete all the Work according to the Contract. Items listed on the ITEMS TO BE COMPLETED OR CORRECTED list shall be completed by the Contractor within _____ days of the Date of Substantial Completion.

**ISSUED BY:** _____
PROJECT MANAGER

**ACKNOWLEDGED BY:** _____
CONTRACTOR

# CITY OF LONGMONT
# CONTRACTOR'S CERTIFICATE AND RELEASE

FROM: _____
(*Contractor*)

TO: CITY OF LONGMONT
Purchasing and Contracts Manager
350 Kimbark Street
Longmont, Colorado 80501
Phone: 303-651-8349

RE: Project Name _____ (Contract)

Bid Number _____

1. Contractor asserts that as of the date this Certificate is signed, the City of Longmont retains the amount of _____ DOLLARS [$_____] under the Construction Contract, including duly approved Change Orders and modifications.

2. Upon payment of the amount stated in Paragraph 1, Contractor releases the City of Longmont from all liabilities, obligations, claims, and demands whatsoever under or arising from this Contract, except specified claims in stated amounts or in estimated amounts where the amounts are not susceptible of exact statement by the Contractor, as follows: (Itemize claims and amounts due. If none, so state.)

_____

_____

3. The Contractor certifies that:
   (a) it has performed all Work required by and according to the Contract, including Work required under Change Orders numbers _____ through _____, and
   (b) it has neither received nor is it aware of any claims which remain unpaid, for materials, supplies, equipment or wages from any subcontractor arising out of the performance of the Contract, and
   (c) the wage rates paid by the Contractor and all subcontractors conform to applicable laws and regulations, and
   (d) the City of Longmont owes the amount stated in Paragraph 1 to Contractor, and
   (e) upon the payment of the amount in Paragraph 2, and of any amount which may be deducted for claims of any nature arising out of the Contract, the Contractor shall execute a releases or assurances as the City of Longmont may request.

4. Except for the amounts stated under Paragraphs 1 and 2 hereof, the Contractor has received from the City of Longmont all money due the Contractor under the Contract.

5. In consideration of the payment of the amount in Paragraph 1, less assessed Liquidated Damages as applicable, the Contractor hereby releases the City of Longmont from any claims arising under or by virtue of the Contract, except the amount(s) listed in Paragraph 2.

Executed this _____ day of _____, 2017.

Contractor _____

By: _____

Its: _____
Title

(*Insert the Corporate or Partnership Certificate as appropriate)*

# CITY OF LONGMONT
# NOTICE OF CONSTRUCTION ACCEPTANCE

Date of Construction Acceptance: _____ P.O. Number: _____

Bid Name: _____ Bid Number: _____

Project Name (if applicable): _____ Project Number (if applicable): _____

Contractor: _____ Project Manager: _____

**Please take notice** that the City of Longmont has accepted the construction work for the Project, as complete.

In conformance with Contract, your obligations and guarantees will continue until _____, 20___.

Please reference the project name and number stated above and submit your invoice for final payment (in duplicate) to the Project Manager.

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CONTRACTOR

By: _____

Title: _____

Date: _____

*Originals: Contractor, Purchasing and Contracts, Project Manager*

**NOTICE OF WARRANTY WORK**

Project Name _____

Project Number _____ Date of Notice _____

Contractor _____

SPECIFIC PART OF PROJECT WHICH REQUIRES REPAIR OR REPLACEMENT:

The Work performed under this Contract has been inspected by authorized representatives of the City, and the specified part of the Project, as indicated above is hereby declared to be a warranty item as outlined in Article 13.1 of the General Conditions. These items shall be completed by the Contractor within _____ calendar days of the date of this notice.

AUTHORIZED BY: _____
Project Manager

RECEIPT ACKNOWLEDGED BY: _____
Contractor

*Originals: Contractor, Project Manager, Purchasing and Contracts*

**CITY PROJECT FINAL ACCEPTANCE**

Project Name _____

Project Number _____ Project Final Acceptance Date _____

To: _____

_____

_____

_____

**Please take notice** that the City of Longmont accepts the Project as complete and hereby formally accepts the project for operation and maintenance as part of the City of Longmont's infrastructure.

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CITY DIVISION APPROVAL

By: _____

Title: _____

Date: _____

CONTRACTOR

By: _____

Its: _____

Date: _____

*Originals: Contractor; Purchasing and Contracts, Project Manager*